



POLICE DEPARTMENT

October 16, 2023

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Brendan Thompson :
Tax Registry No. 960025 :
46 Precinct :

Case No.
2021-23558

Police Officer Herbert Davis :
Tax Registry No. 932526 :
46 Precinct :

Case No.
2021-23559
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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Rosemarie Maldonado
Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Andre Applewhite & Brian Arthur, Esqs.
Civilian Complaint Review Board
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New York, NY 10007

For Respondent Thompson: Michael Martinez, Esq.
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For Respondent Davis: Richard H.B. Murray, Esq.
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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2021-23558

1. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, used force without police necessity in that, with the intent to cause serious physical injury, he intentionally fired multiple shots from his gun at § 87(2)(b) causing serious physical injury. *(As amended)*

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §120.10(1)

ASSAULT IN THE FIRST DEGREE

2. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, intentionally used force without police necessity in that in attempting to cause serious physical injury, he intentionally fired multiple shots from his gun at § 87(2)(b) *(As amended)*

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §§110/120.10(1)

ATTEMPTED ASSAULT IN THE
FIRST DEGREE

3. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he intentionally placed or attempted to place § 87(2)(b) in reasonable fear of physical injury by pointing his gun at § 87(2)(b) without police necessity. *(As amended)*

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §120.14(1)

MENACING IN THE SECOND DEGREE

4. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that with intent to cause physical injury to § 87(2)(b) he caused such injury to him by intentionally firing a

dart from his conducted electrical weapon into § 87(2)(b) without police necessity. (*As amended*)

P.G. 221-08

USE OF CONDUCTED ELECTRICAL
WEAPONS (CEW)

P.G. 221-02

USE OF FORCE

Penal Law §120.05(2)

ASSAULT IN THE SECOND DEGREE

5. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Avenue, Apt. 409, Bronx County, abused his authority as member of the New York City Police Department, in that he recklessly engaged in conduct which created a substantial risk of serious physical injury to § 87(2)(b) when he failed to render aid to § 87(2)(b) without police necessity. (*As amended*)

P.G. 221-04

FIREARMS DISCHARGE BY
UNIFORMED MEMBERS OF SERVICE

Penal Law §120.20

RECKLESS ENDANGERMENT IN THE
SECOND DEGREE

Disciplinary Case No. 2021-23559

1. Police Officer Herbert Davis, on or about April 14, 2019, at approximately 2307 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as member of the New York City Police Department, in that he did not render medical aid to § 87(2)(b)

P.G. 221-04

FIREARMS DISCHARGE BY
UNIFORMED MEMBERS OF SERVICE

Penal Law §120.20

RECKLESS ENDANGERMENT IN THE
SECOND DEGREE

1. Introduction and Procedural History

The central issue in this disciplinary proceeding is whether Police Officer Brendan Thompson engaged in sanctionable misconduct when he tased and then fatally shot § 87(2)(b) in his Bronx apartment on the night of April 14, 2019. Also at issue is whether

Respondent Thompson and his partner, Respondent Herbert Davis, warrant disciplinary sanctions for their failure to render medical aid after the shooting.

At the outset, this tribunal acknowledges that what follows is a profoundly unsettling analysis that can be attributed, in part, to procedural lapses. In an administrative disciplinary hearing of this nature, a tribunal would typically be required to determine whether police officers followed the Department's rules and regulations as they handled an encounter. Here, however, CCRB first voted to bring charges against Respondents after the statute of limitations had already expired, then served Respondents with the actual charges over four-and-a-half months after missing that mandatory deadline.¹ As reflected in the record:

- Date of incident: April 14, 2019
- Date CCRB requested Body-worn camera ("BWC") recordings: June 4, 2019
The Bronx District Attorney's Office ("Bronx DA") requested that CCRB "hold" its investigation until the conclusion of its criminal inquiry.² NYPD did the same.³
- Date Bronx District Attorney released its Report and videos: November 17, 2020⁴
- Date CCRB received 23 BWC recordings from NYPD: January 8, 2021⁵
- Date extended statute of limitations expired: May 31, 2021⁶
- Date CCRB Board voted to bring charges: June 9, 2021
- Date charges were served: October 20, 2021

¹ The tribunal notes that it is common practice to timely serve charges in order to preserve the statute of limitations and then amend the pleadings if additional information is revealed through the discovery process. It is unclear to the tribunal why CCRB did not avail itself of this option.

² CCRB Post-Trial Brief at 2

³ See Tr. 12-13; this tribunal takes judicial notice that on March 4, 2020, New York Lawyers for the Public Interest filed an Article 78 proceeding seeking access to police body-worn camera footage and other evidence related to this shooting. The Department moved to dismiss based on the ongoing NYPD Force Investigation Division inquiry. The motion to dismiss was denied. In a subsequent decision, the Department was ordered to pay plaintiff's attorneys' fees after the judge found that the FOIL fee-shifting provision applied because (i) the records were a matter of public interest and (ii) the agency lacked a "reasonable basis in law" for withholding them. See *N.Y. Lawyers for the Pub. Interest v. N.Y. City Police Dep't.*, Index No. 152402/2020 (Nov. 9, 2021)

⁴ The Bronx District Attorney Office's Report of the Investigation into the Fatal Shooting § 87(2)(b) ("Bronx DA Report") is in evidence as Respondent Exhibit A. The Bronx District Attorney Office concluded that, as a matter of law, they could not prove beyond a reasonable doubt that Officer Thompson's use of deadly physical force was not justified; therefore, criminal charges were not warranted. The Bronx DA video clip compilation that was released in November 2020 is in evidence as CCRB Ex. 6.

⁵ Tr. 6-7

⁶ The standard 18-month statute of limitation for filing of disciplinary charges set forth in New York Civil Service Law Section 75(4) would have expired on October 14, 2020. However, due to the COVID-19 pandemic, the statute was tolled pursuant to Gubernatorial Executive Order 202.8. This gave CCRB an additional seven months to serve the charges.

In most instances, the law prohibits the commencement of a disciplinary case where the service date is missed. An exception to this statutory deadline is permitted where the misconduct “complained of and described in the charges would, if proved in a court of appropriate jurisdiction, constitute a crime.”⁷ Relying on this crime exception to the limitations period, however, frequently results in a greater evidentiary burden for the administrative prosecutor. Unlike disciplinary cases where charges are timely served, when the crime exception clause is invoked it may be insufficient to prove misconduct by establishing that an officer violated Department rules. Instead, the administrative prosecutor must establish, by a preponderance of the evidence, the specific elements of each crime charged as set forth in the New York State Penal Law.⁸ In sum, when charges are not served by the mandated deadline, the focus of the administrative prosecution must shift to the Penal Law.

NYPD teaches police officers that Department guidelines can impose a greater level of professional accountability than the Penal Law. Police officers receive clear notice of their professional obligations, beginning with their training in the Police Academy. The Police Student’s Guide explicitly notes that:

[E]ven though a shooting or other use of force may be legally justifiable [under the Penal Law], it is likely to result in Department discipline if it occurred because an officer unnecessarily put themselves in harm’s way by using poor tactics or by violating other Department procedures [O]fficers who have to hurt or kill people in order to get themselves out of danger - *that they should have avoided by using proper tactics* - are likely to be disciplined.... [I]n Department proceedings the focus ... is upon the tactics used by officers immediately prior to the use of force and upon whether improper tactics contributed to the need for force that could otherwise have been avoided.⁹

⁷ New York Civil Service Law Section 75(4)

⁸ See Disciplinary Case No. 2018-19274 (Aug. 19, 2019), citing *Aronsky v. Bd. of Ed.*, 75 N.Y.2d 997, 1000 (1990)

⁹ Police Student’s Guide, Ch. 4, *Use of Force*, p.5 (Oct. 2019). This longstanding principle has been included as part of the Department’s Use of Force training since 2006.

This distinction is relevant here because the additional responsibilities imposed by the Patrol Guide permit the Department to discipline officers for non-criminal tactical failings that force preventable deadly confrontations.

Following precedent established by the Police Commissioner, this tribunal issued a pretrial ruling dismissing as untimely all charges against both Respondents alleging that they engaged in misconduct when, pursuant to Penal Law §140.15(1), Criminal Trespass in the Second Degree, they “knowingly” and “unlawfully” entered § 87(2)(b) apartment “without sufficient legal authority or permission.”¹⁰ That ruling is incorporated into this Report and Recommendation as Appendix A and is being forwarded to the Police Commissioner for review.

Respondents Davis and Thompson appeared before me on April 24 and 25, and May 11 and 12, 2023 to conduct a trial on the remaining charges. Respondents, through their counsel, entered pleas of Not Guilty. The CCRB introduced video evidence of the incident and called retired Chief Howard Jordan, formerly of the Oakland Police Department, and Dr. Terra Cederroth, Deputy Chief Medical Examiner of the City of New York, as expert witnesses. Both Respondents testified at trial; Deputy Chief Kevin Maloney was also called as their witness. The trial record was closed on June 2, 2023 - the date the parties submitted their post-trial briefs. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s final determination.

Upon careful review of the record in its entirety, this tribunal finds that CCRB failed to establish, by a preponderance of the evidence, all the elements of the crime of Reckless Endangerment (Penal Law §120.20) as alleged against Respondents Davis and Thompson. Accordingly, the tribunal finds that Specification 1 against Respondent Davis and Specification 5

¹⁰ See *Disciplinary Case No. 2018-19734* (Apr. 4, 2022)

against Respondent Thompson are time-barred and must be dismissed. This tribunal further finds that CCRB failed to prove by a preponderance of the evidence, all the elements of the crimes of Assault in the First Degree (Penal Law §120.10(1)), Attempted Assault in the First Degree (Penal Law §§110/120.10(1)), Menacing in the Second Degree (Penal Law §120.14(1)) and Assault in the Second Degree (Penal Law §120.05(2)) as alleged against Respondent Thompson. Moreover, the record failed to disprove the applicability of the justification defense. Accordingly, the tribunal finds that Specifications 1, 2, 3 and 4 of the charges against Respondent Thompson are time-barred and must also be dismissed.

In making these findings, this tribunal notes that the trial record raised serious doubts as to whether Respondent Thompson followed Department guidelines during this incident – specifically, the tactical operation guidelines related to encounters with Mentally Ill or Emotionally Disturbed Persons (“EDP”) set forth in Patrol Guide 221-13. It is critical to underscore that the guiding principle of NYPD’s Force Guidelines is the preservation of human life. In fact, the first line of Patrol Guide 221-01 states that:

The primary duty of all members of the service is to protect human life, including the lives of individuals being placed in police custody.

The stark contrast between Respondent Davis’ approach and that of Respondent Thompson casts a troubling shadow on the latter’s course of action and whether he complied with these Department procedures. As documented by the videos, Respondent Davis made three overt attempts to prevent Respondent Thompson from tasing and shooting § 87(2)(b) including, at one point, actually pushing his partner’s firearm down.

Notwithstanding, the NYPD Force Investigation Division (“FID”) Report¹¹ seemingly ignored Patrol Guide 221-13. Moreover, the FID Report summary of facts and findings sections

¹¹ The FID Report was issued on November 25, 2020. Its findings were approved by the Police Commissioner in January 2021.

failed to address Respondent Davis' repeated attempts to prevent this tragic outcome. This tribunal is puzzled by these omissions – particularly since the “event type” on the first page of the FID Report classifies this incident as an: “*Adversarial Officer Shooting Resulting in the Death of an Emotionally Disturbed Person.*”¹² The failure to address this critical issue head-on was another missed opportunity for the timely resolution of this case.

The evidence presented at trial only compounded the above-noted flaws in the FID Report. The testimony of FID's commanding officer at the time of this incident was dismissive on these points. Most notably, when asked whether it would have been “tactically sound [for the officers] to close the door once they had a visual of § 87(2)(b) he responded:

At that point, you know...you always wanna keep a subject under your view right? You know it's a little Monday morning quarterback to say like coulda, shoulda, woulda. Like had they closed the door, would this never have happened? I don't know that you can say that. (Tr. 279)

While keeping a visual of a subject is critical in many routine situations, the witness' testimony inexplicably overlooked and undermined basic tenets of the Patrol Guide's EDP procedures in a matter that FID itself classified as EDP-involved. The clear language of the Patrol Guide's EDP section states that officers should attempt to “de-escalate” and “isolate and contain the EDP while maintaining a zone of safety until arrival of patrol supervisor and Emergency Service Unit personnel.” In fact, this same Patrol Guide section lists equipment given to officers, such as a “door rope or door wedge,” that can be used to close a door and keep an EDP “isolated and contained.” Patrol Guide 221-13, p.2, paragraph 10 (eff. Nov. 28, 2018) The FID Report and the trial testimony of its commanding officer leave this tribunal with disquieting questions about FID's conclusion that Respondent Thompson acted “consistent with “Department guidelines.”

¹² The FID Report did identify three minor tactical concerns: (i) that Officer Thompson held both his Taser and his firearm simultaneously; (ii) that Officer Thompson subsequently dropped his Taser preventing him from deploying a second cycle after § 87(2)(b) stood back up; and (iii) that Officer Davis was not wearing his body-worn camera.

If the charges in this case had been timely served, it would have been within this tribunal's jurisdiction to undertake a *de novo* review of FID's conclusion. Instead, CCRB's failure to preserve the statute of limitations hijacked this NYPD disciplinary trial and distorted it into a quasi-criminal proceeding where the evidentiary threshold focused on the Penal Law instead of Patrol Guide compliance. As such, whether Respondent Thompson's actions violated the Department's Force and EDP guidelines is moot because the charges were not served by the statutory deadline.

2. Background

§ 87(2)(b) was a 32 year-old male who resided at § 87(2)(b) a supportive housing facility in the Bronx established to assist homeless individuals secure permanent housing. According to family members, he was an aspiring professional dancer and personal trainer. § 87(2)(b) moved to New York City from Georgia and had resided at § 87(2)(b) since 2018. During the last few months of his life, however, § 87(2)(b) residents and staff observed § 87(2)(b) acting in an erratic manner that generated multiple 911 calls and police responses. (CCRB Ex. 12 at 12, 17, 48; Resp. Ex. A at 2, 35-41)

3. Events Leading up to April 14, 2019 Police Response

a. Initial Complaints Concerning § 87(2)(b) Conduct

At approximately 2130 hours on April 14, 2019, § 87(2)(b) security guard, § 87(2)(b) and § 87(2)(b) § 87(2)(b) caseworker, discussed multiple tenant complaints reporting that § 87(2)(b) was engaging in loud and disruptive behavior. § 87(2)(b) advised Security Officer § 87(2)(b) to "have the tenants write a statement and submit it to management, and if they felt threatened, [to] call 911." (CCRB Ex. 12 at 46)¹³ Shortly

¹³ The Bronx DA Report states that an unnamed social worker had contacted a security guard at 1830 hours to report that building residents had been calling "all evening complaining that § 87(2)(b) was bothering them." (Resp. Ex. A at 4-5)

thereafter, a tenant on § 87(2)(b) floor called Security Officer § 87(2)(b) to report that when he complained to § 87(2)(b) about “yelling” and “loud music,” § 87(2)(b) responded, in sum and substance, “I run this shit, don’t tell me to keep it down. I’ll slit someone’s throat like the white man did.” (Resp. Ex. A at 5; *see* CCRB Ex. 12 at 42) Security Officer § 87(2)(b) reached out to § 87(2)(b) over the intercom and asked him to keep the noise down. (CCRB Ex. 12 at 42; Resp. Ex. A at 5) She then observed him outside the building carrying a stick. (CCRB Ex. 12 at 42) According to the FID Report, that stick was vouchered under Invoice No. § 87(2)(b) as “one (1) brown wood stick (four feet, five and a half inches (4’ 5 ½”) in total length).” (*Id.* at 58)

Video captured by building security cameras confirm that § 87(2)(b) exited the building at 2237 hours with the stick in one hand and a cell phone in the other. He wore a long, sleeveless, black vest, grey underwear and black knee high boots. The vest was unfastened, leaving his chest and underwear exposed as he walked around. (CCRB Ex. 6 at 0:01-0:04)

b. Interaction with § 87(2)(b) Superintendent

At 2242 hours, security cameras capture § 87(2)(b) standing in the hallway outside his own apartment holding the stick, a cell phone and, in addition, a serrated knife. After rifling through his vest pockets, § 87(2)(b) turns and walks down the hall. (Resp. Ex. A at 5; CCRB Ex. 6 at 0:05-0:34) According to the FID Report, the knife was vouchered under Invoice No. § 87(2)(b) as “one (1) white metal knife with brown handle (thirteen and one quarter inches (13 ¼”) in total length with an eight inch (8”) blade).” (CCRB Ex. 12 at 58)

At approximately 2246 hours, security cameras recorded § 87(2)(b) walking toward § 87(2)(b) Superintendent § 87(2)(b) basement apartment while carrying the same stick and a knife. (CCRB Ex. 6 at 0:38-0:40) Superintendent § 87(2)(b) told investigators that § 87(2)(b) approached his door because he was locked out of his apartment. Through the

peephole, he observed that § 87(2)(b) carried a large stick. He refused to open the door and directed the tenant to building security. § 87(2)(b) is alleged to have replied, "I will burn this motherfucker down and I will fuck you up." Superintendent § 87(2)(b) also reported that § 87(2)(b) specifically "threatened to punch [him] in the face." (CCRB Ex. 12 at 18; Resp. Ex. A at 2)

The security cameras confirm that § 87(2)(b) was at the superintendent's apartment door. The footage captured him waving his arms and raising the knife over his head before knocking. (CCRB Ex. 6 at 0:41-0:45) As he appears to speak, he gestures and holds the knife in his right hand. § 87(2)(b) then places the knife in his pocket, moves around, knocks on the door a second time and speaks as both arms are up against the doorframe. (*Id.* at 0:53-01:30) Soon thereafter, he rips paper off the door and tosses it across the hall.¹⁴ (CCRB Ex. 6 at 01:37-01:45) When he returns to the superintendent's apartment, he hits the door with his stick. (CCRB Ex. 6 at 01:45-01:48) § 87(2)(b) again appears to speak before banging on the door with both hands and exiting the hallway. (*Id.* at 01:48-02:48)

c. § 87(2)(b) Security Officer's First 911 Call

At 2244 hours, Security Officer § 87(2)(b) called 911 to report § 87(2)(b) threatening conduct and request police assistance. What follows is a transcript of the relevant segments of that conversation:

Operator: New York City 911 do you need police, fire, or medical?
§ 87(2)(b) Hi, yes, I have a tenant in the building who is harassing tenants and supers.... Right now, he's in the basement banging on the super's door.
Operator 1: Okay. Nobody's injured, right?
§ 87(2)(b) No. But hopefully none of these tenants open the door because he's banging on the door, I'm about to call the super now so that he knows not to open the door right now.
(CCRB Ex. 6 at 01:33-02:27; Resp. Ex. A at 6-7)

¹⁴ Superintendent § 87(2)(b) reported to investigators that this was likely a note on his door directing tenants to contact the security desk if they needed assistance after hours. (Resp. Ex. A at 6)

The operator coded the call as a 10-39H(1): other crimes in progress – harassment/inside. (Resp. Ex. A at 7)

d. § 87(2)(b) 911 Call

Four minutes later, § 87(2)(b) called 911 from the building security desk. He first reported needing his keys to enter his apartment because an individual was allegedly “trying to attack” him. He then falsely reported that the building was on fire. Security Officer § 87(2)(b) is heard admonishing § 87(2)(b) as he makes this false report to the 911 operator. What follows is a summary of the relevant segments of that 911 call:

§ 87(2)(b) The emergency is, I’m having a problem with someone who’s trying to attack me in my building, and I need them to come over. I’m safe, but I need the keys to get into my home. And the super, for some reason, is busy....

Operator 2: You need the fire department?

§ 87(2)(b) Yes..... The building’s on fire.

§ 87(2)(b) § 87(2)(b) (in background)

FDNY Op.: What apartment or floor?”

§ 87(2)(b) Hurry up, sir. It doesn’t matter, if the building’s on fire we’d be dead by now, my goodness....We’ll be dead, bitch!

(CCRB Ex. 6 at 03:24-05:37; Resp. Ex. A at 8-10)

Because § 87(2)(b) reported a fire, the call was classified as a 59, a fire job, separate and distinct from the harassment job previously created for this location. (Resp. Ex. A at 10; see CCRB Ex. 12 at 18)

e. § 87(2)(b) Superintendent’s 911 Call

At approximately 2248 hours, Superintendent § 87(2)(b) called 911 to report § 87(2)(b) threats and seek police assistance. What follows is a summary of the relevant segments of that 911 call:

Operator 3: And what is the emergency, sir?

§ 87(2)(b) I’m being threatened by a tenant. I’m the superintendent of the building and I’m being threatened by a tenant right now.

Operator 3: Any weapons?...
§ 87(2)(b) I don't know what he has, he said he will punch me in my face, he said, "I will knock you out." He wants to get in his apartment....
Operator 3: What apartment is he in?
§ 87(2)(b) He's in § 87(2)(b) He locked himself out of his apartment, he said, "Motherfucker, I will punch you in the face."... This is not the first complaint I've had with him, okay?
(CCRB Ex. 6 at 06:01-08:31; CCRB Ex. 12 at 18; Resp. Ex. A at 10-12)

This 911 complaint was merged with the first harassment job created when Security Officer

§ 87(2)(b) called. (Resp. Ex. A at 12)

f. 911 Operator's Dispatch to Respondents

At 2249 hours, dispatch assigned the harassment calls to Respondents. The dispatcher stated: "Can you please check in and advise on this thirty-nine harassment, § 87(2)(b) states that tenant is harassing her, banging on the super's door." (CCRB Ex. 6 at 02:58-03:07) Respondent Davis verbally accepted the job and the dispatcher informed them that it was a "sensitive location for [unintelligible] EDP." (*Id.* at 03:13-03:14) Neither Respondent verbally acknowledged that last transmission.

g. § 87(2)(b) Security Guard's Second 911 Call

At 2251, Security Officer § 87(2)(b) called 911 a second time. She reiterated the need for police assistance and informed the 911 operator that the fire emergency reported by § 87(2)(b) was false:

Operator 4: New York City 911 do you need police, fire, or medical?
§ 87(2)(b) Um, yes, I need the police officers to come please, but the tenant just called, he like ran, he's losing his mind in the building. I called already, but he just called trying to say that there's a fire, there's no fire in the building at § 87(2)(b).... There's no fire, he's losing his mind. I already called before he called, and asked for police to come get him because he's threatening tenants and banging on doors and everything.
Operator 4: ... Does he have a mental history?
§ 87(2)(b) Um, not that I know of.
Operator 4: ... [W]hat is he doing now?

§ 87(2)(b) He just ran out of the building, but before that he was banging on doors with a stick, a big wooden stick, he barely has on any clothes, yelling, screaming at tenants, and I'm getting crazy calls like every minute.... [H]e might need an ambulance, to be honest, yes, he might. But he called the fire department, so they're already coming, I hear them now.

Operator 4: I understand that, ma'am. Do you need an ambulance for him?

§ 87(2)(b) I believe so, because I think he might be intoxicated with something, because he's been losing his mind all day....

(CCRB Ex. 6 at 08:38-11:34; Resp. Ex. A at 3; CCRB Ex. 12 at 18)

This call was assigned to the FDNY and a second NYPD unit.

h. FDNY Response

FDNY entered § 87(2)(b) at approximately 2254 hours. (CCRB Ex. 12 at 19) Security Officer § 87(2)(b) informed Lieutenant Miami Dukette that there was no fire and that § 87(2)(b) was "just acting crazy." (Resp. Ex. A at 15) § 87(2)(b) then told Lieutenant Dukette that he was locked out of his apartment, there was food on the stove, and that the super would not let him in so the door had to be broken down. (*Id.*)

Once on the scene, FDNY Captain Thomas Moore asked § 87(2)(b) what was going on. § 87(2)(b) did not respond, but reportedly acted in a "loud, agitated manner, cursing at the superintendent and yelling about being locked out ... and about having food on the stove." (Resp. Ex. A at 15) § 87(2)(b) then led the firefighters to his apartment where they forcibly opened the door with a Halligan tool. (CCRB Ex. 12 at 19; CCRB Ex. 6 at 12:52-13:20) The firefighters interviewed by the Bronx DA's Office noted that a pan on the stove was "not hot to the touch," the burners were not on, and that "it did not appear" to them that § 87(2)(b) had been cooking. Captain Moore further reported that § 87(2)(b) demeanor changed from "agitated to ecstatic" once his apartment door was opened. (Resp. Ex. A at 3, 15-16) The firefighters did not report that § 87(2)(b) was carrying a knife. (CCRB Ex. 12 at 49)

EMS arrived at § 87(2)(b) at approximately 2258 hours. All fire trucks left the block by 2305 hours. (Resp. Ex. A at 3, 15-16, 26)

4. Police Response

a. Respondents' Arrival at § 87(2)(b)

Respondents arrived at the intersection of Grand Avenue and Macombs Road at 2255 hours, but waited approximately five minutes for FDNY trucks to depart in order for them to park their RMP in front of § 87(2)(b) (Resp. Ex. A at 18; CCRB Ex. 12 at 19; Tr. 408, 478) At 2301 hours, Respondents informed the dispatcher that they were at § 87(2)(b) (Resp. Ex. A at 3) Respondent Davis was aware from prior jobs that this location housed “sick people” and those who were formerly homeless. (Tr. 387, 403) Respondent Davis testified that he took “the lead” because he had more experience than his partner. (Tr. 391-92)

Security Officer § 87(2)(b) Superintendent § 87(2)(b) and § 87(2)(b) the on-call building supervisor, met Respondents and talked to them for about three minutes. None of these witnesses testified at trial.¹⁵ According to Respondent Davis, Security Officer § 87(2)(b) and Superintendent § 87(2)(b) identified themselves as the 911 callers. Superintendent § 87(2)(b) complained that § 87(2)(b) “was banging on his door and threatening to punch him in his face.” Security Officer § 87(2)(b) added that there was “a male with a stick, that was upset, acting a little erratic” and that he had threatened to “hit her as well.” She further explained that § 87(2)(b) was “very upset” about his door being “messed up” because “he had locked himself out” and the Fire Department had helped “to get him in.” (Tr. 387-89)

At trial, Respondent Davis testified that neither individual identified § 87(2)(b) as an emotionally disturbed person nor did he inquire about § 87(2)(b) mental health. Based on

¹⁵ In evidence are summaries of the statements they made when interviewed by FID and the Bronx DA. (CCRB Ex. 12; Resp. Ex. A)

the information provided by the complainants, he viewed this as a “regular argument, a guy that probably was upset, because ... he couldn’t get into his apartment. And that’s all.” (Tr. 390, 410, 452) However, according to the Bronx DA Report, Respondent Davis informed them that the details provided by the 911 callers led him to suspect that § 87(2)(b) may be “under the influence” and need transport to the hospital.¹⁶ The Bronx DA Report also noted Respondent Davis’ statement that the superintendent had claimed that § 87(2)(b) “tried to punch him in the face and had a stick and knife.” (Resp. Ex. A at 18-19)

Respondent Thompson testified at trial that Superintendent § 87(2)(b) was “very nervous...saying § 87(2)(b) was banging on his door,” and that the Security Guard “raised concerns as well.” Respondent Thompson’s recollection is that neither complainant described § 87(2)(b) as an emotionally disturbed person.¹⁷ (Tr. 479-80, 509-11)

b. Respondents’ Initial Interaction with § 87(2)(b)

After talking to the complainants, Respondents, along with § 87(2)(b) and Superintendent § 87(2)(b) took the stairs to § 87(2)(b) fourth floor apartment. Respondents instructed § 87(2)(b) and Superintendent § 87(2)(b) to remain in the stairwell at the end of the hallway while they spoke to § 87(2)(b) (Tr. 480, 511-12, 522; CCRB Ex. 12 at 39-40)

§ 87(2)(b) surveillance footage captured Respondents putting on gloves as they approached § 87(2)(b) apartment. (CCRB Ex. 6 at 18:23-18:53; CCRB Ex. 1 at 00:00-00:12) Respondent Thompson’s BWC recorded the apartment door opening slightly as Respondent Davis knocked and then pushed it. When the door swung back to close, Respondent Davis

¹⁶ Other than these material facts, Respondent Davis’ testimony was substantially consistent with the interview summaries in evidence. (See Resp. Ex. A at 16-19; CCRB Ex. 12 at 26-29)

¹⁷ Respondent Thompson’s testimony did not differ materially with the interview summaries in evidence. (See Resp. Ex. A at 16-19; CCRB Ex. 12 at 22-26)

extended his retractable asp and pushed the door back open multiple times. (CCRB Ex. 1 at 00:12-00:18)¹⁸

At trial, Respondent Davis explained that there was no answer when he first knocked. When he admittedly knocked “harder,” the door then opened slightly and he “pushed” it to “see what [they] had.” From the threshold, Respondent Davis observed § 87(2)(b) carrying both a knife and stick. (Tr. 392) He described § 87(2)(b) as “very upset that we were there” and kept his asp and Taser at hand as a precaution. Respondent Davis testified that he was hoping to start a “dialogue” with § 87(2)(b) “if he drop[ped] the knife.” (Tr. 393-94) At trial, Respondent Thompson confirmed that § 87(2)(b) kept “moving back and forth” and that he seemed “a little bit agitated seeing us there.” He recalled that music was playing inside the apartment and that § 87(2)(b) lowered it. (Tr. 482)

c. Taser Deployment

Respondent Thompson’s BWC recorded his Taser deployment. What follows is a summary of the BWC footage and Respondents’ testimony explaining their actions.

BWC (CCRB Ex. 1):

- 00:19-00:29: § 87(2)(b) can be seen inside his apartment. Respondent Thompson taps Respondent Davis on his right shoulder. When Respondent Davis pushes the door open, Respondent Thompson raises the Taser over Respondent Davis’ right shoulder. Respondent Davis also points his Taser at § 87(2)(b)
- 00:30-00:34: The BWC audio starts. § 87(2)(b) asks, “Why are you in my home?” Respondent Davis orders § 87(2)(b) to “put it down.” Respondents Thompson and Davis keep their Tasers trained on § 87(2)(b) Respondent Davis tells Respondent Thompson, “We ain’t going to tase him.”
- 00:35-00:40: Respondent Davis bangs the door with his asp. § 87(2)(b) walks to the back of his apartment to turn down the music then turns toward the officers and repeats, “Why are you in my home?”

¹⁸ A long black chain appeared to be attached to a closet and the inner doorknob of the main door.

- 00:41-00:46: Respondent Davis instructs § 87(2)(b) to "put it down." § 87(2)(b) moves the knife to his right hand. At that point, Respondent Thompson states, "Oh he's got a knife." Respondent Davis responds, "Yeah I know." § 87(2)(b) waves the knife around and steps closer to the officers as he explains, "I have a knife because I'm cooking."
- 00:46-00:46: Respondent Davis seems to reach back, gestures at Respondent Thompson and says, "Don't, don't, don't." Respondent Thompson simultaneously holsters his Taser and unholsters his firearm. He points the firearm at § 87(2)(b) (CCRB Ex. 6 at 19:27-19:30)
- 00:47-00:48: Respondent Davis repeatedly orders § 87(2)(b) to put the knife down. Respondent Davis aims the Taser's red targeting dot at § 87(2)(b) insists that he is "cooking."
- 00:49-01:10: § 87(2)(b) explains that he called FDNY because he was locked out and that firefighters had already responded. § 87(2)(b) continues to ask why they had opened his door. Respondent Davis tells him, "The door was open with the chain, I knocked on the door," and then adds, "put the knife down on the counter." Respondent Thompson states, "My man, drop the knife."
- 01:11-01:17: § 87(2)(b) does not put down the knife and steps toward the officers while gesturing with the knife. Respondent Thompson again instructs, "Drop the knife." Both officers are standing in the hallway just outside the apartment door. Respondent Thompson has his firearm pointed at § 87(2)(b) as he again orders him to "drop the knife." Respondent Davis' Taser light goes out at 01:11; he is then heard stating, "I don't have my camera on, so be careful."
- 01:18-01:27: Respondent Davis reholsters his Taser. (CCRB Ex. 6 at 20:00) § 87(2)(b) "moves the stick back into his right hand, holding both the knife and the stick parallel to each other at his side. The knife is pointed toward the ground. § 87(2)(b) mumbles, "Just hold it in the center ... of the brain ... yea ... hold it ... hold it, hold it, the center, the center, the center of the brain." As he makes this statement, he points down at his head with his index finger. (Resp. Ex. A at 23) By this point, Respondents have instructed § 87(2)(b) to "drop the knife" approximately nineteen times.
- 01:28-01:29: Respondent Thompson unholsters his Taser and deploys it, hitting § 87(2)(b) in the thigh. He is also holding the firearm in his right hand.
- 01:29-01:34: § 87(2)(b) falls to the ground with the stick and the knife in his hand. Respondent Thompson drops his Taser, holsters his firearm and enters the apartment, followed by Respondent Davis. The wooden stick is next to § 87(2)(b) on the ground. It is unclear if the knife fell from his grip.

Respondent Davis explained on direct examination that he told Respondent Thompson, “We ain’t going to tase him” and “Don’t, don’t” because he did not believe § 87(2)(b) needed to be tased at that point. (Tr. 435-36) Respondent Davis had received NYPD Crisis Intervention Training on April 11, 2019 – three days prior to the incident. (CCRB Ex. 15 at 6)¹⁹ Respondent Davis also explained that he had experience responding to EDP jobs and described two specific instances where he was able to effectively communicate with the individual and safely resolve the incident. (Tr. 381-84)²⁰

Respondent Thompson testified that he immediately pointed the Taser at § 87(2)(b) because he was holding a stick. (Tr. 530-31) He believes § 87(2)(b) “grabbed” the knife at some point during their interaction. (Tr. 482) Respondent Thompson continued to point the Taser hoping that seeing the red dot would cause him to drop the weapons. According to his testimony, when § 87(2)(b) was “very close,” he unholstered his firearm to achieve the same goal. Respondent Thompson testified that he deployed the Taser to disarm § 87(2)(b) by means of a “less lethal device.” (Tr. 486-88, 498)

d. Shooting

Respondents were unable to restrain § 87(2)(b) after he was tased. As documented by the BWC, about twenty seconds transpire between the deployment of the Taser and the firearm discharge.

BWC (CCRB Ex. 1):

01:35-01:38: After being tased, § 87(2)(b) immediately jumps up from the ground, holds the knife and the stick and screams, “Get out” multiple times. Respondents back out of the apartment and into the hallway. Respondent Thompson unholsters his

¹⁹ Pursuant to Respondent Davis’ personnel file, he completed the “Responding to People in Crisis – Introduction to CIT Video Series” on October 16, 2018. He completed Module 1 of that video series on January 22, 2019. (CCRB Ex. 15 at 7; CCRB Exs. 17-18)

²⁰ Pursuant to his personnel file, Respondent Thompson completed the “Responding to People in Crisis – Introduction to CIT Video Series” on October 13, 2018 and Module 1 of that series on January 10, 2019. (CCRB Ex. 14 at 7-8; CCRB Exs. 17-18) He also confirmed that he received Crisis Intervention Training as a recruit in the Police Academy. At trial, however he seemed unsure of the training content. When specifically asked if he remembered his training, he responded, “Not off the top of my head. I don’t remember all the details.” (Tr. 540-41)

firearm. § 87(2)(b) turns his back to them as he runs toward the rear of the apartment.

01:38-01:41: As Respondent Thompson aims his firearm at § 87(2)(b) Respondent Davis says, in sum and substance, “No, no, don’t, don’t, don’t,” and pushes Respondent Thompson’s firearm down.

01:41-01:42: § 87(2)(b) turns and leaps toward Respondents, screaming, “Get out, bitch. I’m gonna kill you all! Get out!” At first, he holds the stick and knife in different hands, but then he jumps in the air, transfers the knife, and holds both weapons in his right hand. The blade of the knife is angled downward. His empty left hand extends forward.

01:42-01:47: § 87(2)(b) is within seven feet from the front door when Respondent Thompson discharges four rounds from his firearm. § 87(2)(b) falls and the apartment door closes.

Hallway Security CAM 18 (CCRB Ex. 6)

20:25-20:30:

Respondent Davis unholsters his Taser and points it at § 87(2)(b)
Simultaneously, Respondent Thompson discharges four rounds.

Respondent Thompson testified that they were unable to restrain § 87(2)(b) after he was tased because he became “frantic” and “agitated” as he “got right up” and grabbed his weapons. He explained, “[I was] in fear of my life, my safety, and everything.” According to Respondent Thompson, he initially fired three rounds because § 87(2)(b) “was still closing the gap. And then he was still a threat to me and was still up. And I felt like he was about to continue to attack us, so I fired one more shot. And at that point he fell behind the door.” (Tr. 490-91) Respondent Thompson testified that he did not recall Respondent Davis telling him, in sum and substance, “No, no, no” as he pointed the firearm, because his “main focus was on § 87(2)(b) (Tr. 546)

On direct examination, Respondent Davis explained that he told Respondent Thompson, in sum and substance, “Don’t, don’t” and pushed down Respondent Thompson’s firearm because, immediately after being tased, § 87(2)(b) ran away from them with “his back turned.” (Tr. 397-98) Respondent Davis confirmed that he again unholstered his Taser when § 87(2)(b)

was “coming at us . . . very fast” with the knife and stick in hand. Respondent Davis “focused on the knife,” and was planning to deploy his Taser, but did not get the opportunity to do so because Respondent Thompson discharged his firearm. (Tr. 398-99, 435-36, 442, 461-62, 472-73)

During cross-examination, Respondent Davis agreed that it was a “mistake” for Respondent Thompson to shoot § 87(2)(b) (Tr. 442) On re-cross, he explained that answer in a manner that was consistent with the above-cited testimony he provided on direct examination. Specifically, Respondent Davis clarified that it was not appropriate for Respondent Thompson to shoot § 87(2)(b) when he ran away from them with his back turned to the officers. (Tr. 465-66) Respondent Davis then added that it was not a mistake to shoot § 87(2)(b) after he came running back toward them armed with a knife that could have injured them. (Tr. 466-67)

e. Shooting Aftermath and Calls for Assistance

Seconds after the shooting, Respondent Thompson notified the dispatcher, “Six response four, I got shots fired, § 87(2)(b) shots fired. . . . Six response four. Let me get a bus rolling.” (CCRB Ex. 6 at 20:34-20:49) He then added, “We got an EDP with a knife.” (*Id.* at 20:52-20:53)

While Respondent Thompson was on the radio, Respondent Davis attempted to open the door twice. On the third try, he succeeded and held it slightly open. (*Id.* at 20:35-20:52) After about a minute, he stepped inside and looked down. (CCRB Ex. 1 at 03:04-03:12) Simultaneously, Respondent Thompson repeated his request for an ambulance and restated “shots fired.” (CCRB Ex. 1 at 03:01-03:08)

EMS arrived at the apartment about two minutes after the shooting. (CCRB Ex. 1 at 04:03; Resp. Ex. A at 26) The BWC captured the EMTs repositioning § 87(2)(b) and administering CPR. (CCRB Ex. 1 at 04:31-05:03)

Before their arrival, neither Respondent took any affirmative steps to determine whether § 87(2)(b) was still alive, nor did they render direct aid. (Tr. 445-46, 553-54) Respondent Davis testified at trial that he was “gradually pushing the door open ... because § 87(2)(b) was laying right behind the door.” Once inside, he observed “a male, unconscious. He wasn’t moving. He wasn’t breathing. His eyes were rolled back. And I knew he was done after that.” (Tr. 400) When the dispatcher asked if any MOS was injured, Respondent Davis replied, “Nobody is injured, it’s just a perp right now.”²¹ MOS is okay.” (CCRB Ex. 1 at 04:41-04:50) Respondent Thompson testified that he was not aware of § 87(2)(b) condition because he was focused on securing the hallway where another resident was agitated and screaming hysterically. (Tr. 492-93, 551-52)

EMS carried § 87(2)(b) to the ambulance at 2225 hours. They arrived at the hospital at approximately 2235 hours. § 87(2)(b) was pronounced dead at 2246 hours. (Resp. Ex. A at 27)

f. Medical Examiner

On April 15, 2019, Dr. Terra Cederroth, Deputy Chief Medical Examiner of the City of New York, conducted § 87(2)(b) autopsy. The Autopsy Report concluded that § 87(2)(b) died from two gunshot wounds and ruled the death a homicide. The toxicology report concluded that amphetamines and methamphetamines were in § 87(2)(b) system at the time of his death. (Tr. 69-70, 79; CCRB Ex. 7)

²¹ At approximately 2313 hours, a sergeant responding to the scene asks, “Who’s injured?” The response heard on the recording was, “Nobody, just a perp.” Although the person who answered may have been Respondent Davis, this specific comment was not raised during his cross-examination. (CCRB Ex. 1 at 06:52-06:58)

Dr. Cederroth testified that the gunshot wound identified as “A” resulted from a bullet entering § 87(2)(b) left upper back.²² That bullet “fractured the rib..., then it went through the left lung. It went through the heart, and then lodged in the soft tissues of the chest and muscles.” Dr. Cederroth opined that gunshot wound “A” would have caused death within seconds. According to the expert witness, the gunshot wound identified as “B” resulted from a bullet entering the right side of § 87(2)(b) chest. That bullet then “fractured three of the ribs on the right side of the chest, grazed the right lung, went through the liver, and then lodged in the soft tissue of the back.” She concluded that gunshot wound “B” would have caused death within a minute. (Tr. 72-73, 80-81; *see* CCRB Ex. 7 at 5-6)

At trial, Dr. Cederroth explained that there was a “remote possibility that’s approaching zero” that § 87(2)(b) could have survived being shot in the heart, but only “if he had immediate surgical intervention.” She had “read of a few instances” of survival, adding that, “it’s incredibly, vanishingly rare.” (Tr. 76, 80-81)

1. Respondent Thompson

a. Specification 1: Assault in the First Degree

CCRB seeks Respondent Thompson’s termination for the fatal shooting of § 87(2)(b). As noted above, because Respondent was not served within the extended statute of limitations period, a finding of misconduct cannot turn wholly on whether Respondent Thompson violated Departmental tactics set forth in the Patrol Guide. Due to this procedural irregularity, in place of using the Departmental construct applied to most disciplinary hearings, CCRB has the burden of proving all elements of Assault in the First Degree.

²² The designation of gunshots “A” and “B” do not necessarily correlate with the sequence in which they were fired. Dr. Cederroth explained, “We tend to organize things based on body location, sometimes based on severity of the injury. It doesn’t mean that it occurred first. It just means that this wound was a more significant injury because it hit vital organs.” (Tr. 72)

Specification 1 mirrors New York Penal Law §120.10(1) which provides that “a person is guilty of assault in the first degree when, with intent to cause serious physical injury... he causes such injury to that person by means of a deadly weapon or dangerous instrument.”

Therefore, CCRB has the burden of proving, by a preponderance of the evidence, that:

- i. Respondent Thompson, with intent to cause serious physical injury to § 87(2)(b), fired his service firearm;
- ii. The firearm discharge caused serious physical injury; and,
- iii. Respondent Thompson was not legally justified in shooting § 87(2)(b).

It is uncontested that Respondent Thompson intentionally shot at § 87(2)(b) four times with a deadly weapon, striking him twice, and that § 87(2)(b) succumbed to the injuries caused by the shooting. In dispute is whether CCRB has disproven Respondent Thompson’s defense that he was justified in using deadly force against § 87(2)(b) as that defense is defined in the Penal Law.

Under New York Penal Law §35.15(2), “A person may not use deadly physical force upon another person ... unless: (a) The actor reasonably believes that such other person is using or about to use deadly physical force.” The Penal Law further provides that an individual may not use deadly physical force in self-defense if they can safely retreat. Police officers, however, are exempt from this requirement if they are acting pursuant to Penal Law §35.30, which states in relevant part:

A police officer..., in the course of effecting or attempting to effect an arrest of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes such to be necessary to effect the arrest ... or in self-defense ... from what he or she reasonably believes to be the use or imminent use of physical force; except that deadly physical force may be used for such purposes only when he or she reasonably believes that: (c) Regardless of the particular offense which is the subject of the arrest ... the use of deadly physical force is necessary to defend the police officer or peace officer or another person from what the officer reasonably believes to be the use or imminent use of deadly physical force.

After reviewing the record in its entirety, this tribunal concludes that the credible evidence supports a finding that Respondent Thompson actually believed that discharging his firearm was necessary to prevent an imminent knife attack that could have endangered the officers and that his belief was reasonable under the circumstances.

It is uncontested that after being tased and falling to the floor, § 87(2)(b) immediately bolted up, shrieked and rearmed himself with both a 4' 5 ½" stick and metal serrated knife with an 8" blade. As Respondents retreated to the hallway to create a tactical zone of safety, § 87(2)(b) momentarily rushed to the rear of the apartment screaming, "Get out" multiple times. He then leaped toward Respondents waving the knife in his right hand and the stick in his left. While rapidly advancing, § 87(2)(b) transitioned the stick from his left hand to his right hand. As he held both the knife and stick in his right hand he shouted, "I'm gonna kill you all! Get out!" When § 87(2)(b) moved to within five-to-seven feet of the officers, Respondent Thompson discharged four rounds killing § 87(2)(b) (Tr. 398-99, 443, 490, 498; CCRB Ex.1 at 01:40-01:46; CCRB Ex. 12 at 21)

At trial, Respondent Thompson explained his reasons for discharging the firearm:

So at that point § 87(2)(b) jumps up. He's sort of frantic. He's agitated. He yells at us ... 'I'm going to kill you all.' Which, you know obviously that makes me very – I felt very scared. And then he runs toward the back of the apartment, grabs the knife and starts to charge toward us. At that point I was very fearful. You know, I was in fear of my life, my safety and everything. And at that point, § 87(2)(b) charging towards us. He has a sharp object. ... I'm thinking he can stab us. ... And once he got within five feet, that's when I chose to discharge my firearm. ... He could have killed one of us. He could have stabbed one of us. The vest wouldn't protect us. (Tr. 490-91)

Respondent Thompson was not alone in his belief that § 87(2)(b) posed a serious threat immediately before shots were fired. Even Respondent Davis, who repeatedly attempted to stop Respondent Thompson from using force during this encounter, corroborated that the officers were in danger when § 87(2)(b) charged at them. On direct examination, Respondent Davis

first explained that the video captured him telling Respondent Thompson, in sum and substance, “don’t, don’t” and pushing down Respondent Thompson’s firearm because, immediately after being tased, § 87(2)(b) ran away from them with “his back turned.” (Tr. 398, 441) The BWC footage corroborates his direct testimony on this point. (CCRB Ex. 1 at 01:29-01:40) Respondent Davis further confirmed what was documented in the BWC footage: that § 87(2)(b) then turned toward them “charging ... at [Respondents]” “very fast” with the knife and stick. Respondent Davis testified that he “focused on the knife” as he “closed in” on them and believed § 87(2)(b) “could have hurt me.” (Tr. 398-99, 470, 472-73)

Additionally, the testimony of CCRB’s expert witness, former Oakland Police Chief Howard Jordan, undermined the administrative prosecutor’s argument that the elements of justification were disproven for this charge. On cross-examination, Chief Jordan affirmed that § 87(2)(b) was “fairly close” to the officers, and moving forward with “decent momentum” immediately before the first shot was fired. He further conceded that his proximity to Respondents breached the approximate 20-foot “zone of safety” officers are trained to maintain, agreeing that § 87(2)(b) had “shortened the distance” and could close it “pretty quickly.” (Tr. 132, 143-44, 166, 211)²³ Chief Jordan also accepted that § 87(2)(b) exclamation -- “I’m gonna kill you”-- was a clear statement of intent. (Tr. 224) More pointedly, CCRB’s expert did not dispute Respondent Thompson’s stated safety concerns during those seconds when § 87(2)(b) ran toward them with a knife, and conceded that, “I do believe that Officer Thompson did demonstrate ... that he was in fear of his life.” (Tr. 145-46) He further agreed that

²³ Patrol Guide 221-13 defines zone of safety as: the distance to be maintained between the EDP and the responding member(s) of the service. This distance should be greater than the effective range of the weapon (other than a firearm), and it may vary with each situation (e.g., type of weapon possessed, condition of EDP, surrounding area, etc.). A minimum distance of 20 feet is recommended. An attempt will be made to maintain the “zone of safety” if the EDP does not remain stationary.” CCRB expert, Chief Jordan, confirmed that this is a basic tenet of police training. (Tr. 132-33, 204-05, 275)

Respondent Thompson's fear was reasonable. (Tr. 181-182) In fact, when specifically asked whether Respondent Thompson was "justified in firing his weapon at the moment he did, when [§ 87(2)(b)] was within four-to-five feet, because he was faced with an imminent threat of deadly physical force, either to himself or to his partner," Chief Jordan unequivocally replied, "Yes." (Tr. 232)²⁴

CCRB raised various legal theories in support of its position that Respondent Thompson was not justified in using deadly force. None were persuasive. For example, CCRB asserted that Respondent Thompson could not invoke the justification defense under Penal Law §35.30(1) because the officers were not "effecting or attempting to arrest" [§ 87(2)(b)]²⁵ This argument is based both on an unreasonably restrictive interpretation of the law and on a faulty factual premise. Respondents responded to 911 calls reporting that [§ 87(2)(b)] was harassing and threatening building occupants with violence. Upon arrival, they interviewed two of the 911 callers and confirmed that [§ 87(2)(b)] had threatened both Superintendent [§ 87(2)(b)] and Security Guard [§ 87(2)(b)] as he was brandishing at least one weapon. Specifically, Superintendent [§ 87(2)(b)] informed Respondents that [§ 87(2)(b)] "was banging on his door and threatening to punch him in his face." According to the DA Report, Superintendent [§ 87(2)(b)] also advised Respondent Davis that [§ 87(2)(b)] was carrying a knife.²⁶ Security Officer [§ 87(2)(b)] added that he "was upset, acting a little erratic," that he was carrying a "stick" and that he had threatened to "hit her as well." (Tr. 387-89, 480)

²⁴ Chief Jordan emphasized, however, that better tactics could have prevented the situation from transpiring as it did. He concluded, "[I]t's my opinion that there were opportunities for the officers to de-escalate this situation to slow things down." (Tr. 235)

²⁵ The other prong of Penal Law Section 35.30, "preventing escape," is not at issue here.

²⁶ Resp. Ex. A at 18; CCRB Ex. 6 at 00:40-00:59 depicts [§ 87(2)(b)] waving the knife around in front of the Superintendent's closed apartment door.

Based on the information obtained, Respondents had reason to believe that § 87(2)(b) had committed, at a bare minimum, harassment. As was their obligation, Respondents approached § 87(2)(b) apartment to look into the validity of the 911 complaints. As Respondent Thompson explained at trial:

So basically, we were going to conduct an investigation. We thought we were going to be taking a report, or we had a possible arrest situation. So we just knocked on his door and were trying to speak to § 87(2)(b) (Tr. 556)

Contrary to CCRB's assertion, these investigative steps were taken within the context of legitimate police work, and do not negate the evidence Respondents already had to support the reasonable conclusion that the commission of an offense had occurred.²⁷

Moreover, from the apartment threshold, Respondents observed § 87(2)(b) holding a large stick and a serrated knife. It is important to underscore that § 87(2)(b) was not, as CCRB argues, merely a person holding a knife while cooking in his kitchen -- a scenario that would not usually trigger suspicion or alarm. Here, § 87(2)(b) was the subject of multiple 911 complaints concerning threats he made while armed with the same stick he held in his hand when the officers first encountered him, as well as a serrated knife with an 8-inch blade.

Within this context, § 87(2)(b) failure to comply with Respondents' immediate and repeated orders to put down the knife raised the threat level and reasonably elevated the officers' safety concerns. The failure to obey the officers' orders also provided independent grounds on which to base a lawful arrest. The Bronx District Attorney's conclusion that there was "no impropriety in [Respondents'] approach and entry into § 87(2)(b) apartment" is instructive on this point:

²⁷ The Bronx DA Report also addressed this point: "After speaking to the Super and hearing his complaint of § 87(2)(b) banging on his door and threatening him, the officers had reasonable cause to believe that § 87(2)(b) had committed the offense of Harassment in the Second Degree." (Resp. Ex. A at 33)

Given the information that they were provided [concerning harassment], their appearance at § 87(2)(b) apartment was not improper and the officers had the authority at that time to place § 87(2)(b) under arrest. Additionally, as events preceding the shots fired by P.O. Thompson unfolded, the officers had reasonable cause to place § 87(2)(b) under arrest for menacing the officers with a knife and a stick pursuant to Penal Law Section 120.13. Moreover, P.O. Thompson and P.O. Davis were authorized to take § 87(2)(b) into custody pursuant to section 9.41 of the Mental Hygiene Law.... (Resp. Ex. A at 33)

In sum, given the totality of circumstances, this tribunal finds that there is insufficient evidence to support a finding that CCRB disproved the elements of justification because Respondents did not have a basis on which to make an arrest within the context of Penal Law §35.30.²⁸

Similarly unpersuasive was CCRB's argument that, pursuant to Penal Law §35.15(1)(b), Respondent Thompson was the initial aggressor and therefore could not invoke the defense of justification. In its Post-Trial Brief, CCRB posited that:

The mere holding of a knife in one's own apartment and refusing to put it down when ordered, unaccompanied by any physical threats or acts, did not make § 87(2)(b) the initial aggressor. (CCRB Post-Trial Brief at 31)

This tribunal can only characterize this as a sanitized scenario that ignores the legitimacy of basic police functions. As noted in more detail above, Respondents were police officers responding to multiple 911 harassment calls. Upon their arrival at § 87(2)(b) they immediately verified the reported threats with the 911 callers. At the threshold of the subject's apartment, Respondents observed § 87(2)(b) acting erratically while holding a large stick and a serrated knife. For everyone's safety, the officers reasonably issued an order for him to put down the

²⁸ CCRB cited the case *People v. Grim*, 166 A.D.2d 264 (1st Dept. 1990) as supporting its argument. *Grim*, however, deals with an assault committed by two off-duty officers. The off-duty officers attempted to invoke the justification defense available to officers who employ force in the course of making an arrest under Penal Law § 35.30. The trial court properly refused to instruct the jury on the defense of justification because the jury could not have reasonably found that defendants employed force in the course of making an arrest. In sum, this case does not address the justification defense within the context of legitimate police action.

weapons. Of particular concern was that the subject was holding the knife in close proximity to the officers -- well within the 20-foot zone of safety they were trained to maintain. Once § 87(2)(b) failed to comply with Respondents' lawful orders, not once, but nineteen times, the threat level rose. At this point, the knife became "essentially a weapon rather than a utensil." *In re Jamie D.*, 59 N.Y.2d 589, 593 (1983) Under these circumstances, the law does not require that individuals wait until they are actually struck or wounded before using reasonable force. *People v. Valentin*, 29 N.Y.3d 57, 62 (2017)(No reversible error by trial court in including an initial aggressor exception in its justification charge. The case involved a fatal shooting during a brief but intense altercation in which the deceased victim threatened defendant with a mop handle. According to the court, there was a "reasonable view of the evidence that [decedent] was the initial aggressor as to physical force because he picked up the mop handle and followed defendant before defendant ever used or threatened the use of a gun"); *see also Merzon v. County of Suffolk*, 767 F.Supp. 432 (EDNY 1991)(An officer is authorized to use deadly force when he reasonably believes it necessary to defend from what he reasonably believes to be the use of imminent use of deadly force.)²⁹

Likewise, this tribunal rejects the contention that the justification defense is not available to Respondent Thompson pursuant to Penal Law §35.15(1)(a), which exempts an individual whose conduct provoked the aggression with intent to cause physical injury. Specifically, CCRB argues that, "The marked contrast in § 87(2)(b) behavior before and after being tased -- going from being upset to becoming threatening -- established that it was the tasing that provoked § 87(2)(b) to approach the Respondents [with the knife]." They add that § 87(2)(b)

²⁹ This tribunal also rejects the assertion that this exception to the justification defense applies not only to the charges alleging Assault in the First Degree, but also to those alleging Attempted Assault in the First Degree, Menacing in the Second Degree, and Assault in the Second Degree.

“threatening” reaction was “foreseeable” because he did not want the officers in his home.

(CCRB Post-Trial Brief at 32)

The legal implications of the Taser deployment are more fully discussed in the section addressing Specification 4 - Assault in the Second Degree. At the outset, this tribunal rejects the blanket contention that when a law enforcement officer uses less than lethal force in an attempt to disarm a recalcitrant subject, they are, in essence, acting as an initial aggressor as set forth in Penal Law §35.15(1)(a). A ruling to the contrary would erroneously criminalize an officer’s defensive use of a Taser when an erratic subject puts officers in reasonable fear for their safety.

Accordingly, this tribunal finds that CCRB failed to disprove by a preponderance of the evidence that the justification defense applies to the charge set forth in Specification 1.³⁰

Based upon the foregoing, Specification 1 is dismissed as untimely.

b. Specification 2: Attempted Assault in the First Degree

CCRB argued that Respondent Thompson engaged in misconduct when he fired four shots, including the two bullets that did not strike § 87(2)(b) and charged him with “intentionally using force without police necessity in that in attempting to cause serious physical injury, he intentionally fired multiple shots from his gun at § 87(2)(b).”³¹

Inasmuch as the charges of Assault in the First Degree and Attempted Assault in the First Degree rely on the same facts and assertion of the justification defense, the analysis of Specification 1 above is applicable to this charge. Based on that analysis, this tribunal finds that CCRB failed to disprove Respondent Thompson’s justification defense with respect to Specification 2. Therefore, Specification 2 is dismissed as untimely.

³⁰ This tribunal also rejects the assertion that this exception to the justification defense applies not only to the charges alleging Assault in the First Degree, but also to those alleging Attempted Assault in the First Degree, Menacing in the Second Degree, and Assault in the Second Degree.

³¹ Under Penal Law Section 110, “A person is guilty of an attempt to commit a crime when, with intent to commit a crime, he engages in conduct which tends to effect the commission of such crime.”

c. Specification 3: Menacing in the Second Degree

Respondent Thompson was charged with “wrongfully using force in that he intentionally placed or attempted to place § 87(2)(b) in reasonable fear of physical injury by pointing his gun at § 87(2)(b) without police necessity.” The language of this specification mirrors the language of Penal Law §120.14 (1), Menacing in the Second Degree.

This charge must fail because its framework disregards the legitimate law enforcement context in which Respondent Thompson removed his firearm and pointed it at § 87(2)(b) (CCRB Ex. 1 at 00:46-01:27) As discussed above, it is uncontested that § 87(2)(b) acted erratically and held a large stick and knife as Respondents attempted to investigate the 911 complaints. In addition, § 87(2)(b) did not comply with Respondents’ repeated orders to drop those weapons. When asked at trial why he removed his firearm, Respondent Thompson testified, “§ 87(2)(b) was very close to us, I took out my firearm. I pointed at him in hopes that he would—he would drop the weapons; the knife, the stick. Those are very dangerous instruments. You know, a knife is a blunt instrument, as well as the stick. Could have easily injured myself or Officer Davis, incapacitated us.” (Tr. 486) In sum, Respondent had an objectively reasonable rationale for displaying his firearm defensively.

This falls squarely within the New York Court of Appeals’ acknowledgement that frightening a person with a gun in order to defend one’s life can be a viable defense. *See People v. Perry*, 19 N.Y.3d 70, 71 (2012) Moreover, in this case, Respondent Thompson pointed his gun to achieve a legitimate law enforcement purpose: to prevent an armed subject, who was standing within the 20-foot zone of safety, from advancing toward them as they attempted to conduct authorized police business. As such, this Penal Law section does not logically apply to this set of circumstances. Accordingly, Specification 3 is dismissed as untimely.

d. Specification 4: Assault in the Second Degree

CCRB contends that tasing § 87(2)(b) constituted Assault in the Second Degree. This tribunal disagrees. Although significant tactical questions were raised concerning this Taser deployment, the evidence did not establish that Respondent Thompson committed felony assault when he used *less than lethal force* to disarm a subject who refused to drop his weapon as they stood only feet apart.

To prevail, CCRB had the burden of proving by a preponderance of the evidence the following elements of Penal Law § 120.05(2):

- a. Respondent Thompson intended to cause physical injury;
- b. Respondent Thompson caused physical injury; and
- c. Respondent Thompson caused such physical injury using a dangerous instrument.

Penal Law § 10.00(13) defines a “dangerous instrument” as:

[A]ny instrument, article, or substance, ... which, under the circumstances in which it is used ... is readily capable of causing death or other serious physical injury.

As such, in determining whether an object is a dangerous instrument, the question is whether it is readily capable of causing serious physical injury. Penal Law § 10.00(10) defines serious physical injury as:

[A] physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement, protracted impairment of health or protracted loss or impairment of the function of any bodily organ.

This record lacks the necessary proof to establish that, *as deployed here*, the Taser qualified as a dangerous instrument. Specifically, the evidence did not prove that this Taser discharge was *readily capable* of creating *protracted* or *serious* injury as required by law.

Legal precedent is clear: determining whether a Taser is a “dangerous instrument” requires a case-by-case assessment of its capability to cause serious harm as it was used by the

accused. Two cases illustrate this point. In *People v. Hall*, 18 N.Y.3d 122 (2011), defendants were convicted of Robbery in the First Degree. An issue on appeal was whether the stun gun³² defendants used to incapacitate a store manager during the crime qualified as a “dangerous instrument” under Penal Law §10.00(13). In that case, the victim described the harm suffered as “pain, a burning sensation and temporary incapacitation.” The Court of Appeals wrote, “These are very unpleasant things to experience, but they are not ‘serious physical injury’ as the statute defines it. The jury had no basis for concluding that the stun gun was readily capable of killing or maiming someone, or of causing any of the other severe harms described in Penal Law §10.00(10).” (*Id.* at 128-29) In contrast, the Appellate Division, Second Department held in *People v. MacCary* that the manner in which a stun gun was used by a police officer did qualify as a “dangerous instrument.” In that case, the subject was restrained by one police officer while another applied a stun gun “several times to the complainant’s body for several seconds during each application.” The resulting injuries were considerable and included, “extreme pain, severe skin lesions and significant burns.” *People v. MacCary*, 173 A.D.2d 646 (2d Dept. 1991)³³

As in *Hall*, this record is insufficient to prove that the manner in which Respondent Thompson deployed the Taser rendered it a “dangerous instrument.” First, the Taser prongs hit § 87(2)(b) front thigh, an area within the Patrol Guide’s “recommended point of aim” and outside the zones likely to result in protracted harm. Second, the Taser cycle lasted, at most, five seconds. This is well within the fifteen seconds that the Department acknowledges, “may

³² Penal Law § 265.00 (15-c) defines an electronic stun gun as “any device designed primarily as a weapon, the purpose of which is to stun, cause mental disorientation, knock out or paralyze a person by passing a high voltage electrical shock to such person.”

³³ CCRB cited two cases in support of its argument that the Taser was a dangerous instrument. After close review, this tribunal concludes that they have little precedential value. *People v. Sledge* does not stand for the proposition that a Taser is a dangerous instrument; rather, it only acknowledged the possibility that “a Taser can, in fact, result in death or other serious physical injury and as such, may qualify as a dangerous instrument.” In making this observation, however, the court firmly asserted that, “This court’s decision is limited to the finding that a Taser does not meet the definition of deadly weapon” *People v. Sledge*, 69 Misc. 3d 859, 861 (Kings Cty., Sup. Ct. 2020). Although the second case cited, *People v. Jones*, concluded that a Taser was a dangerous instrument, no factual details were provided that would guide an analysis of its applicability. *People v. Jones*, 173 A.D.3d 1062 (2d Dept. 2019)

increase risk of death or serious injury.”³⁴ In short, the actual mechanics of the Taser discharge was within Department guidelines aimed at minimizing physical injuries.³⁵ Because the credible evidence does not support a finding that the Taser, in the manner in which it was used here, was a “dangerous instrument,” this charge fails.³⁶

An additional basis for rejecting Specification 4 is CCRB’s failure to disprove the applicability of the justification defense. Penal Law § 35.15(1) states that:

[A] person may ... use physical force upon another person when and to the extent he or she reasonably believes such to be necessary to defend himself, herself, or a third person from what he or she reasonably believes to be the use or imminent use of unlawful physical force by such other person....

CCRB’s argument that Respondent Thompson cannot avail himself of the justification defense for his use of the Taser again ignores both the law enforcement framework by which this encounter must be evaluated and the real safety risks present during this interaction.

It is pure fiction to suggest that, even though he was holding a knife, § 87(2)(b) posed no threat to the officers because he was cooking in his kitchen. As discussed in more detail above,³⁷ Respondents were there to investigate multiple 911 harassment calls that they verified

³⁴ Patrol Guide 221-08 warns against discharging a Taser “at an individual’s head, neck and chest, if possible.” It further states that the Taser “should not be intentionally aimed at an individual’s groin.”

³⁵ Patrol Guide 221-08 notes that Tasers “can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs).” The temporary incapacitation is meant to give officers a “window of opportunity” to subdue a subject while reducing the risk of injuries. (CCRB Ex. 16 at 21)

³⁶ CCRB’s argument that the Taser prong disfigured § 87(2)(b) because it “may have left a permanent scar had [he] survived,” is insufficient to prove that the Taser was a dangerous instrument. (CCRB Post-Trial Brief at 28) According to precedent, protracted disfigurement is established “when a reasonable observer [of the injury] would find [the] altered appearance distressing or objectionable.” *People v. McKinnon*, 15 N.Y.3d 311, 315 (2010) The wound at issue here fell far short of this standard. Dr. Cederroth testified that the Taser prong caused “a very small” puncture wound in the thigh. When asked whether that injury could leave a scar, she was equivocal and responded, “it might have or it might not have....” (Tr. 78; CCRB Ex. 10) The speculative nature of this testimony from a medical expert was, in itself, insufficient to establish this element of the crime. Even assuming that the puncture wound on the thigh would have scarred, based on this record it is reasonable to infer that it would not have become a serious and protracted disfigurement. This is consistent with legal precedent applying this Penal Law standard. See *People v. McKinnon*, 15 N.Y.3d 311 (2010) (The mere existence of two, three-centimeter bite mark scars on the arm would not make the victim’s appearance distressing or objectionable); *People v. McBride*, 211 A.D.3d 512 (1st Dept. 2022) (Photos of the facial scar, and testimony from treating doctor, were not enough to warrant an inference of disfigurement); *People v. Smith*, 193 A.D.3d 1260 (3d Dept. 2021) (two circular gunshot wound scars on the leg did not qualify as protracted disfigurement)

³⁷ See pages 9-15, 27-29 above.

upon their arrival at § 87(2)(b) Respondents approached the threshold of the subject's apartment for the lawful purpose of investigating the complaints. There, they observed § 87(2)(b) holding at least one of the weapons he had held in his hand as he threatened building staff with violence.

For everyone's safety, and consistent with training, the officers lawfully ordered the subject to drop the knife. He failed to comply with those lawful orders not once, but nineteen times. Compounding the difficulty of the encounter, § 87(2)(b) was argumentative and defiant. Each time an order to put the knife down was ignored, it prompted a reasonable threat assessment of increased risk. In sum, this was an unpredictable encounter where an armed, non-compliant and erratic subject held a knife as he stood in close proximity to police officers responding to multiple 911 calls. To assert that this did not pose a threat to officer safety is simply incorrect.³⁸ In sum, the totality of the evidence presented at trial failed to disprove the justification defense asserted by Respondent Thompson for his defensive use of less than lethal force. Accordingly, Specification 4 must be dismissed.

In making this finding this tribunal acknowledges that, although not a crime, tasing § 87(2)(b) was not the only tactical alternative available to Respondent Thompson. During trial, CCRB raised legitimate questions about applicable Patrol Guide procedures and tactics. For example, the record here included significant evidence that disengagement, by isolating and containing the subject, may have been a more prudent tactical option rather than pressing a harassment investigation to the point of a physical confrontation with an armed EDP.

³⁸ This conforms with Patrol Guide 221-08, Use of Conducted Electrical Weapons, which states that a Taser "should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present." [emphasis added] See *People v. Valentin*, 20 N.Y.3d 57 (2017) and full discussion on pages 29-31 above. See also *Fuentes v. Schemmer*, 2023 U.S. Dist. LEXIS 7200 (SDNY, Jan. 23, 2023) (federal civil claim of excessive force was dismissed where use of Taser was "reasonable in order to permit the officers to bring an unlawful situation to a safe and effective conclusion")

Respondents had sufficient information to suspect that § 87(2)(b) was an EDP in need of assistance.³⁹ § 87(2)(b) semi-coherent mumblings and odd movements were obvious signs of an EDP episode. Specifically, § 87(2)(b) appeared to disassociate as he raised his hand high and pointed down at his head muttering, “just hold it in the center...of the brain...yea...hold it...hold it... hold it...the center, the center, the center of the brain.”⁴⁰ If there were any initial doubts about the subject’s mental status, this conduct was certainly clarifying and should have altered Respondent Thompson’s approach to the encounter.⁴¹

Respondent Davis’ intervention to prevent the use of the Taser highlights that its deployment might have been tactically premature. In fact, at trial he confirmed that he told Respondent Thompson not to tase § 87(2)(b) because there were other tactics they could have used to defuse the situation. (Tr. 436-38) Respondent Davis’ position is supported by the Patrol Guide procedures in place for EDPs, as well as their CIT training.⁴² Each emphasize the importance of the following interventions during encounters with EDPs to protect human life: endeavor to slow the pace of the interaction, establish a dialogue, employ de-escalation tactics, request a patrol supervisor and the Emergency Service Unit, and attempt to isolate and contain the EDP utilizing standard issue equipment such as a door rope or door wedge. *See* Patrol Guide 221-13

³⁹ Indeed, Respondent Davis told the Bronx DA investigator that even before entering the apartment, he was under the impression, based on the representations of the security guard and superintendent, that § 87(2)(b) might be under the influence and need transport to the hospital. (Resp. Ex. A at 19)

⁴⁰ Resp. Ex. A at 23

⁴¹ Respondent Thompson himself described § 87(2)(b) as an “EDP with a knife” when he called in the shooting and requested an ambulance. (CCRB Ex. 6 at 20:52-20:53)

⁴² The introductory CIT training video, titled “Respondent to People in Crisis,” (CCRB Ex. 17) advises officers to: “establish a rapport” and “apply proven communications technique to defuse potentially volatile situations.” The training also emphasizes that: “We should always seek to slow down these incidents. Slowing the pace usually leads to a better outcome especially if you take the time to involve the person in crisis in the process.”

Regrettably, given the untimely service of the charges, this tribunal cannot give full consideration to these important tactical guidelines. Instead, the legal questions this tribunal can appropriately address are limited to whether CCRB met its burden of proving the elements of Assault in the Second Degree. The evidence fell short of that required burden of proof. Accordingly, Specification 4 is found to be untimely and must be dismissed.

e. Specification 5: Reckless Endangerment in the Second Degree

Respondent Thompson is charged with “recklessly engaging in conduct which created a substantial risk of serious physical injury to § 87(2)(b) when he failed to render aid to § 87(2)(b) without police necessity.” This charge mirrors Penal Law §120.20, Reckless Endangerment in the Second Degree, which describes that this prohibited conduct ensues when an individual “recklessly engages in conduct, which creates a substantial risk of serious physical injury to another person.” At issue is whether CCRB proved by a preponderance of the credible evidence that Respondent Thompson was reckless and that the failure to render aid created a substantial risk of serious physical injury. The record does not support a finding that CCRB satisfied this burden of proof.

It is uncontested that Respondent Thompson called for an ambulance seconds after the shooting. EMS entered § 87(2)(b) apartment in under two-and-a-half minutes and immediately began chest compressions in an attempt to resuscitate him. (Tr. 494; CCRB Ex. 1 at 04:05; Resp. Ex. A at 26-27) It is further uncontested that neither Respondent checked his pulse or breathing, and that they failed to administer CPR after he was wounded. (Tr. 446, 553; CCRB Ex. 1 at 01:46-04:02) This inaction appears to constitute a failure to follow Patrol Guide 221-04 that requires all officers involved in a shooting to “render assistance to injured, if necessary.” However, as discussed in more detail above, a finding of misconduct in this case cannot be based

solely on Patrol Guide standards. What must be proven are the elements of the crime Reckless Endangerment in the Second Degree.

Tragically, the evidence established that, given the grave nature of § 87(2)(b) injuries, any assistance within Respondents' capabilities would have been futile. As hard as it was to watch, Respondents' failure to personally administer aid to § 87(2)(b) did not, in and of itself, create a substantial risk of serious physical injury. Without proof of this element of Penal Law §120.20, the charge must fail.

The tribunal bases its conclusion primarily on the testimony of CCRB's medical expert, Dr. Cederroth. At trial, she answered several general questions concerning the importance of immediately providing basic life support measures to individuals who are shot. When asked whether these measures increase the chance of survival she replied, "It depends on the severity." (Tr. 75-76)

Dr. Cederroth's opinion concerning § 87(2)(b) chances of survival, however, was much more pessimistic; she opined that gunshot wound "A" would have caused death "within seconds," and gunshot wound "B" would have caused death "within a minute." According to the expert, to survive gunshot wound "A" would have required "immediate surgical intervention" because it went through the heart. (Tr. 76, 80-81; *see* page 23 above) When asked if there was "a chance" § 87(2)(b) could have survived if he had received immediate medical attention, Dr. Cederroth responded that she had "read of a few instances" but added:

I think that it's a very remote possibility that's approaching zero, but if he had immediate surgical intervention, and really immediately, it's a possibility, but very unlikely.
(Tr. 76)

In sum, the medical intervention required to assist § 87(2)(b) at that point would have been surgical in nature – a medical treatment beyond Respondents’ capabilities.⁴³ Given that an ambulance was immediately called and was on the scene within minutes, the evidence did not prove that Respondents failure to render direct aid increased the risk of serious physical injury as required by the Penal Law.

A Sixth Circuit Court addressing an analogous question of law is instructive. That case involved a federal §1983 civil rights lawsuit resulting from a fatal police shooting in which it was alleged that the officers were deliberately indifferent to the plaintiff’s serious medical needs as he lay dying.⁴⁴ The Court addressed a police officer’s due process duty to render aid “personally” and concluded:

Imposing an absolute requirement for an officer to [render aid] ignores the reality that such medical emergencies often call for quick decisions to be made under rapidly evolving conditions. As long as the officer acts promptly in summoning aid, he or she has not deliberately disregarded the serious medical need of the detainee even if he or she has not exhausted every medical option. *Stevens-Rucker v. City of Columbus*, 739 F. App’x. 834, 846 (6th Cir. 2018)

Accordingly, this tribunal finds that CCRB failed to prove the elements to establish that Respondent Thompson’s inaction created a substantial risk of serious physical injury as proscribed in Penal Law §120.20.⁴⁵ As such, Specification 5 is untimely and must be dismissed.

⁴³ Officers are trained to render aid after a police-involved shooting by administering “basic first aid,” utilizing a tourniquet or Quick Clot to stop the bleed. *Operations Order 022* (2016) Since 2018, officers have also been required to undergo BLASTT, “Basic Life Support and Trauma Treatment” training, which includes CPR training. *Operations Orders 009s* (2018) and *005* (2019)

⁴⁴ The standard applied in *Stevens-Rucker v. City of Columbus*, was “deliberate indifference to serious medical needs,” which requires a finding that the defendants knew of and disregarded a substantial risk of serious harm to [the plaintiffs] health and safety.

⁴⁵ The sole case cited by CCRB in support of this specification states that an “increased risk,” sufficient to meet the standard needed for reckless endangerment, was proven where defendants left an individual they had injured laying unattended “on a trafficked roadway” where he could be run over by cars. *People v. Galatro*, 84 N.Y.2d 160 (1994) That case is clearly distinguishable from the facts at hand.

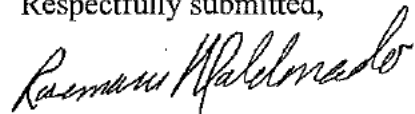
Respondent Davis

a. Specification 1: Reckless Endangerment in the Second Degree

Respondent Davis is charged with “abusing his authority as a member of the New York City Police Department, in that he did not render medical aid to § 87(2)(b)”. The record does not support a finding that Respondent Davis engaged in the charged misconduct. First, although the charge against Respondent Davis alleges that he violated Penal Law §120.20, “Reckless Endangerment in the Second Degree,” the charge itself failed to plead the elements of that crime as required when an administrative prosecutor invokes the crime exception to the statute of limitations.⁴⁶ This alone is sufficient to dismiss the charge.

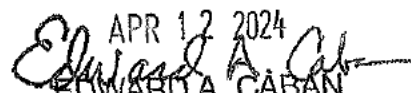
Second, even if the pleading document itself were not defective, as discussed in detail above, the expert opinion presented at trial failed to support a finding that Respondent Davis’ inaction after the shooting increased the risk of serious physical injury. (See pp. 23, 39 above) Accordingly, the charge against Respondent Davis is untimely and must be dismissed.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

APR 12 2024

EDWARD A. CABAN
POLICE COMMISSIONER

⁴⁶ Notably, Respondent Thompson was initially charged with an identical specification. A year later Respondent Thompson was served with amended charges with language mirroring the elements of the Penal Law crime of reckless endangerment. Inexplicably, no such amendment was made to the pleading in Respondent Davis’ case.

Appendix A



From: Rosemarie Maldonado, Deputy Commissioner, Trials

To: Andre Applewhite, Esq., for the Civilian Complaint Review Board
Michael Martinez, Esq., for Respondent Thompson
Richard Murray, Esq., for Respondent Davis

Subject: *Disciplinary Case Nos. 2021-23558 & 2021-23559*
Police Officers Brendan Thompson & Herbert Davis

Date: April 19, 2023

1. Introduction

This tribunal has carefully reviewed the parties' April 17, 2023 submissions made in response to my correspondence dated April 14, 2023. In my letter, I noted that the charges in these cases were served nearly five months after the expiration of the extended statute of limitations established by Executive Order 202.8. The failure to serve these charges in a timely manner raised issues akin to those reviewed by this tribunal and decided by the Police Commissioner in *Disciplinary Case No. 2018-19734* (April 4, 2022) and *Disciplinary Case No. 2021-24349* (October 20, 2022). Those decisions involved time-barred charges and the applicability of the crime exception to the statute of limitations set forth in New York Civil Service Law § 75(4).¹

¹ New York Civil Service Law § 75(4) states:

Notwithstanding any other provision of law, no removal or disciplinary proceeding shall be commenced more than eighteen months after the occurrence of the alleged incompetency or misconduct complained of and described in the charges . . . provided, however, that such limitations shall not apply where the incompetency or misconduct complained of and described in the charges would, if proved in a court of appropriate jurisdiction, constitute a crime.

Pursuant to 38 RCNY §15-02, DCT is authorized to render “any ruling or order necessary [to ensure] the efficient adjudication of disciplinary proceedings.” As such, I am dismissing the specifications alleging criminal trespass: Specifications 1 and 2 in Case No. 2021-23559 (Respondent Davis) and Specification 5 in Case No. 2021-23558 (Respondent Thompson). All other specifications shall proceed to trial.

2. Analysis

The elements of Criminal Trespass in the Second Degree are set forth in Penal Law section 140.15[1]: “A person is guilty of criminal trespass in the second degree when[] he or she knowingly enters or remains unlawfully in a dwelling.” In the seminal case, *People v. Basch*, 36 N.Y.2d 154 (1975), the New York Court of Appeals explained that in the context of a charge of criminal trespass, “it must be proved that such person ‘knowingly’ entered the premises without license or privilege and, therefore, a person who enters upon premises accidentally, or who honestly believes that he is licensed or privileged to enter, is not guilty of any degree of criminal trespass.” (See *People v Luke (Derek)*, 37 Misc 3d 73, 78 [1st Dept. 2012], quoting *Basch*, *supra* at 159 [“A person knowingly enters or remains unlawfully in a building when he is aware that he is not licensed or privileged to do so . . . [Defendant’s] conviction for criminal trespass in the third degree was against the weight of the evidence. An individual ‘who enters upon premises accidentally, or who honestly believes that he is licensed or privileged to enter, is not guilty of any degree of criminal trespass. . . .’ Therefore, [Defendant’s] belief, even if mistaken, negated the element of ‘knowingly and unlawfully remaining. Accordingly, the judgment of conviction is reversed.’”]; 6 New York Criminal Practice § 61.03 [“[T]he mental culpability required for trespass, actual knowledge that the entry or remaining is unlawful, is entirely subjective.”]).

Assessing the factual claims in the light most favorable to CCRB, this tribunal finds that

the administrative prosecutor in this case failed to satisfy the standard set forth in this well-established legal precedent on criminal trespass. It focused instead on the theory that the officers' stated reason for entering the apartment (to make sure no one else was inside) was "disingenuous" and "not a sufficient basis for entering an apartment without a warrant given the totality of the circumstances and the absence of exigent circumstances." CCRB further contends that Respondent Thompson admitted there was no reason to believe anyone else was in the apartment. These factual assertions, however, do not create a basis for potential criminal liability.

The tribunal's finding in this case is consistent with Department precedent. Last year, this tribunal was presented with a similar legal issue in a case charging an officer with an otherwise time-barred unlawful entry that CCRB alleged also constituted criminal trespass in the second degree. *Disciplinary Case No. 2018-19734* (April 4, 2022). As noted in that decision, "The carve-out for crimes under Civil Service Law §75(4) is an exception to the jurisdictional 18-month statute of limitations in disciplinary matters, not a substitute for the timely service of Charges and Specifications." The judge further held that CCRB "failed to allege a basis upon which the tribunal could reasonably find that Respondent acted 'knowingly,' as that term is used and understood in connection with a criminal trespass . . . CCRB equates reasonableness in the context of Fourth Amendment violations with the assessment of *mens reas* in the context of criminal trespasses. The former is an objective reasonableness standard that typically exposes the violator, even for a mistake of law, to the remedy of the suppression of evidence or a civil action (typically brought in a 42 USC § 1983 action); while the latter requires particularized proof as to the violator's state of mind, exposing the violator to a criminal sanction." The judge recommended that the specification be dismissed, holding that CCRB "failed to allege

particularized facts tending to show that Respondent ‘knowingly’ entered complainant’s home unlawfully.” The Police Commissioner approved this recommendation on April 4, 2022.

In October 2022, the Police Commissioner issued a second decision dismissing a charge as time-barred and rejecting the criminal exception in a use of force case. In that matter, the tribunal held that “CCRB seems to engage in circular reasoning, asking the tribunal to find that because CCRB used certain operative words in the charge, the conduct therefore must constitute the crime alleged. This tribunal cannot and will not set a precedent that allows parties to circumvent the statute of limitations by making unsupported and entirely conclusory allegations of criminal elements to [save] otherwise time-barred Patrol Guide violation charges.”

Disciplinary Case No. 2021-24349 (October 20, 2022).

While CCRB correctly notes that this matter is factually distinguishable from Case No. 2018-19734, the legal requirements for invoking the crime exception cannot be set aside based on factual distinctions. CCRB is required, as a matter of law, to allege a basis upon which the tribunal could reasonably find that Respondents acted “knowingly,” as that term is used and understood in connection with a criminal trespass. It is insufficient to again conflate the reasonableness of an entry as it relates to Fourth Amendment violations with the *mens reas* required to establish criminal trespasses. The tribunal reiterates its prior position that “while the unlawful invasion of a home by government actors is a violation that strikes at the core of the individual liberties enshrined in the Fourth Amendment, the tribunal is not aware of [and has not been presented with] any precedent for the prosecution of an on-duty police officer for a criminal trespass under circumstances similar to the case at bar. This lack of precedent, although not fatal, supports the conclusion that CCRB has employed an unprecedented interpretation of the New York State Penal Law”

Accordingly, as CCRB has failed to allege particularized facts tending to show that either Respondent committed criminal trespass, the tribunal is compelled by law to dismiss Specification 5 in Case No. 2021-23558 and Specifications 1 and 2 in Case No. 2021-23559.

Rosemarie Maldonado
Deputy Commissioner Trials

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In Matter of the Disciplinary Proceedings of the
CIVILIAN COMPLAINT REVIEW BOARD,
Petitioner,

Disciplinary Case Nos: 2021-23558
2021-23559

-against-

Police Officer BRENDAN THOMPSON,
Tax Registry Number 960025

POST-TRIAL BRIEF

Police Officer HERBERT DAVIS,
Tax Registry Number 932526

Respondent.

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INTRODUCTION

On April 14, 2019, Respondents, Police Officers Brendan Thompson and Herbert Davis (the “Respondents” and, individually, the “Respondent”), responded to a 911 dispatch at § 87(2)(b) in the Bronx. § 87(2)(b) a resident of the building, who was the subject of the 911 calls, was in his apartment cooking when the Respondents entered his home without authority or police necessity. Within minutes, § 87(2)(b) was dead.

The Respondents violated the law, the Patrol Guide, and police training, when they knowingly and unlawfully entered § 87(2)(b) apartment, when Respondent Thompson intentionally pointed and fired his TASER and gun at § 87(2)(b) and when both officers recklessly failed to render aid to § 87(2)(b) after he was struck with multiple bullets and was clearly in need of assistance. The Respondents’ actions were unjustified and resulted in the tragic and unnecessary killing of § 87(2)(b).

Evidence adduced at the Respondents’ departmental trial proved by a preponderance of the evidence that Respondent Thompson violated Patrol Guide provisions 221-02 (use of force), 221-01 (force guidelines), 221-04 (firearms discharge by a uniformed member of service), and 203-10 (public contact-prohibited), and that Respondent Davis violated Patrol Guide 203-10 (public

contact-prohibited) and 221-04 (firearms discharge by a uniformed member of service). The trial also established by a preponderance of the evidence that Respondent Thompson's actions would constitute the crimes of trespass in the second degree (Penal Law § 140.15(1)), menacing in the second degree (Penal Law § 120.14(1)), assault in the first degree (Penal Law § 120.10(1)), attempted assault in the first degree (Penal Law §§ 110/120.10(1)), assault in the second degree (Penal Law § 120.05(2)), and reckless endangerment in the second degree (Penal Law § 120.20), and that Respondent Davis's actions would constitute the crimes of criminal trespass in the second degree (Penal Law § 140.15(1)) and reckless endangerment in the second degree (Penal Law § 120.20). As such, the Respondents are guilty of all charges and specifications and should be terminated from the New York City Police Department (NYPD or "the Department").

PROCEDURAL HISTORY

The Civilian Complaint Review Board ("CCRB") received the underlying complaint on May 25, 2019, and requested the body-worn camera ("BWC") footage from the New York City Police Department (the "NYPD") on June 4, 2019. On July 29, 2019, the Bronx District Attorney's Office requested that CCRB hold its investigation until the conclusion of the criminal inquiry. The NYPD's Force Investigations Division (FID) was also investigating this matter and denied CCRB access to the BWC footage until the conclusion of that investigation. The District Attorney's Office did not pursue any criminal charges and FID issued a report finding that the officers had not engaged in misconduct. The FID findings were endorsed by the Use of Force Board and then-Police Commissioner Dermot Shea. On January 8, 2021, over 19 months after sending its initial request, the CCRB finally received twenty-three (23) BWC recordings from the NYPD. More than a month later, on February 11, 2021, the CCRB received the FID case file. The CCRB conducted a timely five-month investigation, and on June 9, 2021, the full board substantiated the allegations

against both officers and recommended Charges. Respondent Thompson was served on October 14, 2021, and Respondent Davis was served on October 21, 2021.

STATEMENT OF FACTS

§ 87(2)(b) Activity Prior to Respondents' Arrival

On April 14, 2019, at approximately 10:37 p.m., § 87(2)(b) is depicted on surveillance footage exiting § 87(2)(b) in the Bronx. CCRB Ex. 6 at 00:02-00:04. He is subsequently seen in front of his fourth-floor apartment searching through his pockets while holding a stick and a knife. CCRB Ex. 6 at 0:00:06. At 10:42 p.m., § 87(2)(b) is seen arriving at superintendent § 87(2)(b) door, knocking, and engaging in conversation—presumably with § 87(2)(b) CCRB Ex. 6 at 0:00:50.

Subsequently, there were several calls made to 911. At approximately 10:44 p.m., building security guard § 87(2)(b) called 911 and reported that § 87(2)(b) who lived in § 87(2)(b) was harassing tenants and the superintendent. CCRB Ex. 6 at 0:01:31. § 87(2)(b) stated that § 87(2)(b) was carrying a stick and banging on the superintendent's door. CCRB Ex. 6 at 0:01:33. § 87(2)(b) called 911, at approximately 10:48 p.m., and told the operator that someone was trying to attack him, that he did not have his keys, and requested the fire department because the building was on fire. CCRB Ex. 6 at 0:03:27. The superintendent also called 911 at approximately 10:48 p.m. to report that § 87(2)(b) threatened to punch him in the face and knock him out; the superintendent did not know if § 87(2)(b) was armed. CCRB Ex. 6 at 0:05:56. § 87(2)(b) called 911 a second time and said that there was no fire and § 87(2)(b) was "losing his mind." CCRB Ex. 6 at 0:08:37. § 87(2)(b) stated that she was unaware of § 87(2)(b) mental health history, that he was banging on doors with a big wooden stick, yelling at tenants, and that he might need an ambulance. CCRB Ex. 6 at 0:09:00. She also said that it was possible that § 87(2)(b)

was intoxicated and that he had been “losing his mind all day.” CCRB Ex. 6 at 0:08:37. § 87(2)(b) told the 911 operator that she heard the fire department and the police at the location. CCRB Ex. 6 at 0:08:38.

At approximately 10:49 p.m., NYPD Dispatch, members of service in radio communication with police personnel (“Dispatch”) informed “Response 4” (Respondents Thompson and Davis) that a caller stated that a tenant was harassing her and banging on the superintendent’s door. CCRB Ex. 6 at 0:03:08. Respondent Davis acknowledged receiving this message. CCRB Ex. 6 at 0:03:10. The Dispatcher then stated, “sensitive location for ... history of EDP.” CCRB Ex. 6 at 0:03:12; CCRB Ex. 13; CCRB Ex. 13A. Neither Respondent Thompson nor Respondent Davis responded to Dispatch as to whether they heard this radio transmission. CCRB Ex. 6; CCRB Ex. 13; CCRB Ex. 13A. At trial, however, Respondent Davis acknowledged hearing Central indicate that the location is sensitive for a history of emotionally disturbed persons. Departmental Trial Transcript (“Tr.”) 406. Respondent Thompson did not recall hearing the dispatcher say this and testified that it is not necessarily an important piece of information to know. Tr. 503. Respondent Davis acknowledged knowing that § 87(2)(b) is a location that houses people who have psychological and mental issues or “individuals with a sickness,” and that failing to inform his partner of this was a mistake. Tr. 403, 405-406.

Fire Department Personnel Assist § 87(2)(b) with Reentering his Apartment

At approximately 10:54 p.m., § 87(2)(b) is seen in surveillance footage conversing with a firefighter in the lobby of § 87(2)(b) CCRB Ex. 6 at 0:11:42 – 0:12:25. Shortly thereafter, § 87(2)(b) is seen escorting six firefighters to his apartment. CCRB Ex. 6 at 0:12:53. A firefighter forces open § 87(2)(b) door, then another firefighter enters the apartment,

followed by § 87(2)(b) CCRB Ex. 6 at 0:13:40. The firefighters are then seen moving away from § 87(2)(b) apartment while he remains inside. CCRB Ex. 6 at 0:14:07.

Respondents Thompson and Davis Respond to 911 Call of Harassment

When the Respondents arrived on the scene, they could not drive onto the block because there were fire trucks in the area. Tr. 504. They waited for approximately five minutes for the fire trucks to move before driving up to § 87(2)(b) Tr. 507. In that time, the Respondents did not contact Dispatch, perform a computer check, or utilize any other available technology to ascertain why the fire department was at the location. Tr. 507-508. Respondent Davis acknowledged that fire department personnel appeared to be both inside and outside the building. Tr. 407. Respondent Thompson testified that he did not recall seeing any fire department personnel on scene, but acknowledged that if fire trucks were present, it stands to reason that fire department personnel would be there as well. Tr. 505-506. Neither Respondent asked the fire department personnel why they were there or whether their presence had any connection to the harassment complaint. Tr. 408, 506. Respondent Davis testified that it would have been helpful to know that the fire department call was connected, and he admitted that failing to speak with the fire department personnel was a mistake. Tr. 409.

Respondents Enter § 87(2)(b)

At approximately 11:02 p.m., the Respondents arrived in the lobby of the building and spoke with the superintendent and the security guard for a couple of minutes. CCRB Ex. 6 at 0:15:15; Tr. 409-410, 508-509. Respondent Davis testified that the superintendent told him § 87(2)(b) was acting “crazy.” Tr. 409. The Respondents were also informed by the superintendent and security guard that § 87(2)(b) had a weapon and that he had threatened to hit someone. Tr. 413. Neither Respondent asked the superintendent or the security guard if § 87(2)(b) had a

mental health condition. Tr. 510-511, 409-410. Respondents did not ask the superintendent or the security guard whether § 87(2)(b) appeared to be under the influence of anything. Tr. 511. Respondent Davis testified that it would have been helpful to know information about § 87(2)(b) mental health condition before encountering him and that it was a mistake for him and his partner not to ask the superintendent and the security guard these questions. Tr. 510.

Respondents never discussed any strategies or tactics for how they would approach or deal with § 87(2)(b) once they got to his apartment. Tr. 413, 512-513. Respondent Davis admitted that it would have been helpful if he had discussed this with his partner and it was a mistake not to do so before encountering § 87(2)(b) Tr. 413. Upon approaching § 87(2)(b) apartment, both Respondents noticed that the apartment door was damaged. Tr. 513, 411. Respondent Davis testified that because of his failure to inquire, he had no idea that fire department personnel had forced open § 87(2)(b) apartment door moments prior to the Respondents' arrival. Tr. 411-412. Respondent Davis acknowledged that it would have been helpful to know beforehand what the fire department had done to § 87(2)(b) door, and it was a mistake for him and his partner not to ask what happened when the fire department was there. Tr. 412.

Respondents Received Crisis Intervention Training

Respondent Davis received crisis intervention training ("CIT") a few months before this incident. Tr. 427. Respondent Thompson received CIT when he was in the academy. Tr. 317, 540; CCRB Ex. 14, pg. 11. Both Respondents acknowledged being taught that it is important to try and build a rapport with individuals in crisis in an attempt to de-escalate a situation and garner voluntary compliance. Tr. 320, 428, 543; CCRB Ex. 17; CCRB Ex. 18. The Respondents admitted that they were taught the importance of slowing down a situation, to explain to individuals in crisis why they are there, to give an individual in crisis a sense of being heard and understood, and to

enhance communication. Tr. 428, 431, 544; CCRB Ex. 17; CCRB Ex. 18. Respondent Thompson testified that although he received CIT training in the academy, he was “not exactly a hundred percent sure on all the information.” Tr. 540. When asked on cross examination if learning how to deal with individuals who appear to be emotionally disturbed was part of his CIT training, Respondent Thompson testified that he was “not a hundred percent sure on the training” and that he did not remember the “bunch of scenarios” because “this happened over seven years ago.” Tr. 540-541. When asked if he remembered his CIT training, Respondent Thompson replied, “Not off the top of my head. I don’t remember all the details. I don’t remember.” Tr. 541.

Respondents Encounter § 87(2)(b)

When the Respondents arrived at § 87(2)(b) apartment, the door was closed. Tr. 415. Respondent Davis knocked more than five times, but the door did not open. Tr. 415. When he knocked more forcefully, the door opened slightly then began to close, and Respondent Davis pushed the door back open. Tr. 416. He repeated this approximately four more times because the door kept closing. Tr. 416. Eventually, Respondent Davis put his foot past the threshold of the apartment and used his arm to hold the door open. Tr. 417. When Respondent Davis opened the apartment door, he confirmed that there was no one else in the apartment other than § 87(2)(b) Tr. 414. As soon as Respondent Davis saw § 87(2)(b) he took out and extended his asp. Tr. 414; CCRB Ex. 1 at 0:00:17; CCRB Ex. 6 at 0:19:01. Approximately two seconds after he took out his asp, Respondent Davis took out his TASER, armed it, and pointed it in § 87(2)(b) direction. CCRB Ex. 1 at 0:00:25; CCRB Ex. 6 at 0:19:03. Respondent Thompson also took out his TASER. CCRB Ex. 1 at 0:00:24. BWC footage showed § 87(2)(b) holding a stick and a kitchen knife in his right hand. CCRB Ex. 1 at 0:00:33; CCRB Ex. 6 at 0:19:13. § 87(2)(b) bare left hand was held out toward the Respondents while he repeatedly asked why they were in

his home. CCRB Ex. 1 at 0:00:33; CCRB Ex. 6 at 0:19:13. Respondent Davis ordered § 87(2)(b) to “put it down” several times and instructed Respondent Thompson that, “We ain’t gon’ tase him.” CCRB Ex. 1 at 0:00:33; CCRB Ex. 6 at 0:19:13. At this point, Respondent Davis did not believe there was a need to tase § 87(2)(b) because there were other things his partner could do to diffuse the situation. Tr. 436-437. Respondent Davis banged on the door with the asp, CCRB Ex. 1 at 0:00:35; CCRB Ex. 6 at 0:19:18, in order to intimidate § 87(2)(b) Tr. 421.¹ Immediately after Respondent Davis struck the asp against the door, § 87(2)(b) who was still holding the stick and the kitchen knife in his right hand, walked to the back of his apartment, reached toward a countertop, and turned down the music that had been playing in the background. Tr. 424, 519-520; CCRB Ex. 1 at 0:00:35; CCRB Ex. 6 at 0:19:18.

The CCRB called Howard Jordan, a police tactics and use of force expert, as a witness at trial. Mr. Jordan has twenty-three years of experience as member of the Oakland Police Department and has experience training subordinates on leadership qualities, decision making, and the use of force. Tr. 90. For ten years he has owned and operated Jordan Consulting and Investigations, which specializes in internal affairs and use-of-force investigations. Tr. 93. Mr. Jordan has been retained as an expert witness by the San Francisco City Attorney’s Office, the City of Vacaville, the City of Concord, the Santa Clara County Sheriff’s Office, and has been qualified as an expert in two court proceedings. Tr. 95, 97.

After reviewing the Force Investigation Division report, the Civilian Complaint Review Board report, the Bronx District Attorney’s report, surveillance footage, the Respondents’ prior statements, the Respondents training transcripts, and various NYPD policies, Mr. Jordan testified that “§ 87(2)(b) showed compliance by going back to his radio and turning it down so he can

¹ Howard Jordan, the CCRB’s expert witness, testified that an asp baton “makes a loud clicking noise... And it could be very intimidating. It’s very threatening. And it could cause fear as—as it may have in this case.” Tr. 111.

hear the officers communicate with him. So that should have been a sign that he is willing to listen to them. But, again, lack of situational awareness on their part did not take, those cues from § 87(2)(b) and try to engage him in any kind of dialogue to help resolve this incident peacefully.” Tr. 242. According to Mr. Jordan, § 87(2)(b) turned the music down because it was affecting his communication with the Respondents. Tr. 114-115. The Respondents ordered § 87(2)(b) to drop the kitchen knife over 19 times. Tr. 425, 520-521. Mr. Jordan opined that there was no attempt to engage § 87(2)(b) in dialogue so that the Respondents could effectively communicate with him. Tr. 115. “This is where the officers lack of situational awareness played a role.” Tr. 115. In explaining what he meant by the term “situational awareness,” Mr. Jordan said, “It’s a common terminology used in law enforcement circles. To explain, when things unfold, you have to be able to react to them. And ... as incidents unfold you have to be able to take a step back, reassess very quickly. This is ... a very rapid-moving situation. And be aware of what your actions are gonna be. So, what you may have thought of may be the solution to the problem may not be because things have unfolded differently. So, you have to be able to react to those situations, as the situation unfolds.” Tr. 117.

§ 87(2)(b) explained to the Respondents multiple times that he had the knife because he was cooking. CCRB Ex. 1 at 0:00:45 - 0:00:45; CCRB Ex. 6 at 0:19:28 – 0:19:35; Tr. 433, 528. He also explained that he called the fire department because he was locked out of his apartment. CCRB Ex. 1 at 0:00:53 – 0:00:48; CCRB Ex. 6 at 0:19:37 – 0:19:41. According to Mr. Jordan, this was another missed opportunity to defuse the situation and engage § 87(2)(b) in conversation because the Respondents never asked why the fire department was there or what the firefighters did. Tr. 118.

During his CCRB interview, Respondent Thompson claimed that he tried on multiple occasions to ask § 87(2)(b) questions and establish a rapport with him. Tr. 524-527. At trial, however, Respondent Thompson acknowledged that he did not try to communicate with § 87(2)(b) Tr. 545. § 87(2)(b) asked four times why the Respondents were in his home, Tr. 321, 426, and they never answered his questions. Tr. 426, 520-521, 529. They never mentioned the allegations asserted by the superintendent and the security guard, and they did not ask § 87(2)(b) to explain his side of the story. Tr. 521-523. In fact, the Respondents never asked § 87(2)(b) a single question. Tr. 523, 545. In Mr. Jordan's expert opinion:

This was a chance for the Respondents to take a step back, try to de-escalate this incident, try to get § 87(2)(b) to comply in terms of communicating with him. The goal of the, of the police department in these situations, according to their training policy, is to gain voluntary compliance, engage § 87(2)(b) with the results of, this: all right? Communicate effectively with him. They are standing, according I think, to Officer Davis's testimony, they're about 15 feet away from § 87(2)(b) at this point. Again, an opportunity to reassess the situation and do something different. Try to gain some time, gain some distance, gain his compliance, rather than *provoking the incident*.

Tr. 113 (emphasis added).

Respondent Davis responded to § 87(2)(b) questions about why his door was kicked in by saying, "The door was open with the chain, I knocked on the door." CCRB Ex. 6 at 0:19:45. § 87(2)(b) response to this was, "Excuse me?" CCRB Ex. 6 at 0:19:46.

Respondent Davis testified that during his interaction with § 87(2)(b) he did not use the CIT techniques he had learned and admitted that this was a mistake because had he done so, the incident could have ended very differently. Tr. 432.

Respondents Received TASER Certification Training on the Tactical Use of Weapons

Patrol Guide Procedure No. 221-08 Use of Conducted Electrical Weapons (CEW), provides, in relevant part, that:

A Conducted Electrical Weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It is prohibited to use a CEW in situations that do not require the use of physical force. Active resistance includes physically evasive movements to defeat a member of the service attempt to control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Active aggression [includes] threat overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

Respondents Thompson and Davis received CEW (TASER) certification training prior to this incident. CCRB Ex. 16 at 439, 531-532. They both acknowledged at trial that they knew that when a TASER is deployed, the electrical cycle lasts for five seconds. Tr. 439, 535. An individual who is successfully tased is incapacitated for five seconds, which provides a window of opportunity to handcuff or disarm the individual. Tr. 439, 535. The individual is only incapacitated during the cycle and can recover immediately after the cycle has ended. Tr. 535. Thus, it is important, when feasible, for the officer to issue a verbal warning such as “TASER, TASER, TASER” to alert their partner to prepare to restrain the tased individual. Tr. 339, 342, 439.

Officers are trained not to possess both a firearm and CEW at the same time in order to prevent an accidental discharge from the unintended weapon. CCRB Ex. 12 at 72. The Deputy Chief of FID, Kevin Maloney, testified that officers are also trained to maintain possession of their TASER. Tr. 344. Respondent Thompson acknowledged that this was what he was taught in training—to hold on to his TASER after deployment because he can recycle a second five second cycle if the individual recovers from the first cycle. Tr. 538.

In Violation of the Patrol Guide and Police Training, Respondent Thompson Tased § 87(2)(b) While Holding His Firearm and Failed to Keep Possession of His TASER

Approximately two seconds after Respondent Davis took out his asp, Respondent Thompson took out his TASER, armed it, and pointed it in the direction of § 87(2)(b) CCRB

Ex. 1 at 0:00:25; CCRB Ex. 6 at 0:19:03. Although the video evidence shows that § 87(2)(b) had been in possession of the kitchen knife at the outset of this incident, CCRB Ex. 1 at 0:00:35; CCRB Ex. 6 at 0:19:18, Respondent Thompson testified that he only realized that § 87(2)(b) had a kitchen knife after § 87(2)(b) turned down the music and switched the knife to his right hand while asking the officers why they were in his home. Tr. 424, 519-520. At minute mark 0:19:26 in the Bronx District Attorney footage, Respondent Thompson stated, “Oh, he’s got a knife,” to which § 87(2)(b) responded, “I have a knife because I’m cooking.” CCRB Ex. 6 at 0:19:26. Respondent Thompson is then seen holstering his TASER and beginning to unholster his firearm. CCRB Ex. 6 at 0:19:29. In response, Respondent Davis uses his right hand to try to stop his partner from unholstering his firearm, stating, “Don’t, don’t, don’t...” CCRB Ex. 6 at 0:19:29; Tr. 441. Respondent Davis testified that he did this because he did not want his partner to shoot § 87(2)(b) Tr. 441. The video footage shows Respondent Thompson pointing his firearm at § 87(2)(b) while Respondent Davis holds the apartment door open and both Respondents continuously order § 87(2)(b) to drop the knife. CCRB Ex. 6 at 0:19:51. Respondent Davis then reholstered his TASER. CCRB Ex. 6 at 0:19:58. At this point, Respondent Thompson, who was still holding his firearm, unholstered his TASER and tased § 87(2)(b) CCRB Ex. 6 at 0:20:11, who then fell to the apartment floor. CCRB Ex. 1 at 0:01:32; CCRB Ex. 6 at 0:20:11.

Prior to being tased, § 87(2)(b) had not attempted to use the kitchen knife as a weapon against the Respondents, Tr. 432, he was not physically resisting the Respondents, Tr. 532, he was not being actively aggressive, and he had not made any verbal threats that suggested that he was about to attack the Respondents. Tr. 306-307, 437, 532-533; CCRB Ex. 1 at 0:01:33; CCRB Ex. 6 at 0:20:09. § 87(2)(b) was holding the stick and the kitchen knife in his right hand with the kitchen knife pointed down and away from the Respondents. Tr. 437, 535; CCRB Ex. 1 at 0:01:33;

CCRB Ex. 6 at 0:20:09. In Mr. Jordan's expert opinion, at that point, "it was impossible for § 87(2)(b) holding the knife and the stick in one hand, to attack the officers with just those weapons in one hand." Tr. 118. § 87(2)(b) was not advancing toward the Respondents, rather he was standing in a stationary position while waving his empty left hand and pointing to the top of his head, Tr. 311; CCRB Ex. 1 at 0:01:26; CCRB Ex. 6 at 0:20:08, while saying to himself, "Hold it, hold it, hold it, the center, the center, the center of the brain." CCRB Ex. 1 at 0:01:33; CCRB Ex. 6 at 0:20:11.

Respondent Thompson did not warn his partner that he was going to tase § 87(2)(b) Tr. 537, 438; CCRB Ex. 1 at 0:01:25; CCRB Ex. 6 at 0:20:11. Respondent Davis testified that he was surprised that Respondent Thompson did this; he believed it was a mistake for Respondent Thompson to tase § 87(2)(b) Tr. 438-439. In Mr. Jordan's expert opinion:

... at the moment that Officer Thompson discharges at § 87(2)(b) two things didn't happen. § 87(2)(b) did not advance towards the officers; he was standing there. He was standing a few feet away from them. He made no effort to, to (sic) move towards the officers. He didn't make any verbal threats towards the officers. And similarly, Thompson, the policy says, when...it's feasible to do so, he should have warned Officer Davis that he was going not deploy his TASER, and he should have yelled: TASER. TASER. TASER. There's two reasons for that.... It tells...the cover officer that's there (sic) that you're preparing to use the TASER and that they should be prepared to react to that. So once the person falls, you can secure them, subdue 'em, disarm them.... That didn't happen here. The second reason for the TASER is to (tell) the person that you're gonna tase, if you tell 'em you're gonna tase, they may comply.... So, people know that they're gonna get tased...they don't wanna get tased, and they will comply. So that's the other reason for that.

Tr. 121.

Likewise, Deputy Chief Maloney testified that there are several reasons for giving a TASER warning before deploying it. "You want the officers to know that—when the TASER discharges, it makes a bang, a noise; right. You wouldn't want your fellow officer to think that that's a firearm being discharge, so you let them know: Hey. TASER. TASER.TASER. That lets

the officers on the scene know that you're about to discharge your TASER. Also... when a TASER is deployed, it gives you an opportunity to take a subject into custody, if the TASER's effecting on the subject." Tr. 341-342.

Respondent Thompson told Deputy Chief Maloney during the FID investigation that he put his firearm back in his holster prior to deploying his TASER, Tr. 344-345, but the video evidence established that he had both weapons out when he fired his TASER at § 87(2)(b) CCRB Ex. 6 at 0:19:58. After he tased § 87(2)(b) Respondent Thompson dropped the TASER and began to holster his firearm while entering the apartment, followed by Respondent Davis. CCRB Ex. 1 at 0:01:30; CCRB Ex. 6 at 0:20:15. Mr. Jordan explained at length why, in his expert opinion, this was a major tactical error.²

Respondent Thompson Shot and Killed § 87(2)(b)

§ 87(2)(b) recovered from the TASER shock, stood up, and moved toward the back of his apartment while still carrying the stick and the kitchen knife. CCRB Ex. 1 at 0:01:38; CCRB Ex. 6 at 0:20:22. As Respondents Thompson and Davis retreated toward the front door and out into the hallway, Respondent Thompson inadvertently kicked his discarded TASER. CCRB Ex. 6

² Q: When Respondent Thompson tased § 87(2)(b) and dropped his TASER, why was that such a big tactical error?

A: Because officers are trained -- and they're similar with NYPD -- that when you deploy your TASER the first time, you only have five seconds and you should -- you should maintain a hold on your TASER without re-holstering or discarding it, in this case. Because if the person -- if it doesn't work the first time, you have five seconds. And if you still have your TASER in your hand, you can actually recharge the probe and give yourself additional time to secure the person and disarm him, if that's the case.

Q: So, it's fair to say that had Respondent Thompson followed his training and not tactically made this huge mistake and dropped his TASER, he could have tased § 87(2)(b) a second time; correct?

A: Correct. He could have recharged and tased him for another five seconds.

Q: Which would have prevented him (Respondent Thompson), necessarily, from killing him § 87(2)(b) correct?

A: Well, it's likely that Davis would have been -- they would have been able to handcuff and disarm § 87(2)(b) When you have -- now you have 10 seconds instead of 5. So, it's a little longer, and they have more time to work.

Tr. 244-245.

at 0:20:21. When Respondent Thompson pointed his firearm at § 87(2)(b) Respondent Davis put his hand up and pushed the firearm aside. CCRB Ex. 1 at 0:01:38; CCRB Ex. 6 at 0:20:22. Respondent Davis once again told Respondent, “No, no, don’t, don’t, don’t, don’t, don’t.” CCRB Ex. 6 at 0:20:22; Tr. 441. Respondent Davis testified that he did not want Respondent Thompson to shoot § 87(2)(b) Tr. 442. § 87(2)(b) then approached the Respondents, while still holding the stick and kitchen knife, and stated, “I’m going to kill you all, Get out, Get out.” CCRB Ex. 1 at 0:01:41; CCRB Ex. 6 at 0:20:24; Tr. 443, 547. At that point, Respondent Davis unholstered his TASER and pointed it at § 87(2)(b) CCRB Ex. 6 at 0:20:24. When § 87(2)(b) reached for the door with his left hand as if he were trying to close it, CCRB Ex. 1 at 0:01:41; CCRB Ex. 2; CCRB Ex. 6 at 0:20:25; Tr. 443, Respondent Thompson discharged his weapon four times, hitting § 87(2)(b) twice. CCRB Ex. 1 at 0:01:42 - 0:01:47; CCRB Ex. 2; CCRB Ex. 6 at 0:20:25 – 0:20:29; Tr. 443. Respondent Davis testified that he planned to tase § 87(2)(b) again, but he did not get a chance to because Respondent Thompson discharged his firearm. Tr. 442. On cross-examination, Respondent Davis testified that it was a mistake for Respondent Thompson to shoot § 87(2)(b) Tr. 442. Respondent Davis then said that his testimony may have been a mistake because he had never considered whether or not Respondent Thompson should have shot and killed § 87(2)(b) it never came to his mind. Tr. 468-469.

Medical Examiner’s Testimony

The Deputy Chief Medical Examiner, Dr. Terra Cederroth, performed § 87(2)(b) autopsy. Dr. Cederroth testified that § 87(2)(b) death was caused by two gunshot wounds—one to the torso and one to the back. Tr. 70. § 87(2)(b) also suffered an injury on his right arm that resembled “scrapes” at the same level as the gunshot wound to the chest. Tr. 74. According to Dr. Cederroth, this injury indicated that § 87(2)(b) arm was close to his body and that these

are scrapes that actually contain small metal fragments. Tr. 75. Dr. Cederroth testified that it is important for anyone on the scene to start basic life support measures, including chest compressions, because it is essential to the preservation of vital organs. Tr 75. Further, doctor Cederroth explained, “If the heart is not pumping actively anymore, all of the tissues, including the brain, are not being supplied with blood and they start getting hunger for oxygen. So, it’s essential to start basic life support measures.” Tr. 75-76

Respondents Failed to Render Aid to § 87(2)(b)

Patrol Guide Procedure 221-04 Firearms Discharge by Uniformed Members of the Service, provides, in relevant part, that “When a uniformed member of the service discharges a firearm, either on or off-duty: Call for ambulance and render assistance to injured, if necessary.” Respondents Thompson and Davis both admitted at trial that they received training in CPR and performing chest compressions and that they were familiar with the Patrol Guide requirement to render aid when a member of service discharges their firearm. Tr. 449, 551.

After Respondent Thompson shot § 87(2)(b) the apartment door closed. CCRB Ex. 1 at 0:01:47; CCRB Ex. 6 at 0:20:31; Tr. 443. Approximately one minute and twenty seconds later, Respondent Davis opened the door, looked at § 87(2)(b) for a few seconds, and then moved to stand in the hallway. CCRB Ex. 1 at 0:03:06; Tr. 445. The following is Respondent Thompson’s communication with dispatch after he shot § 87(2)(b)

At 23:08:17 ...“Response four, I’ve got shots fired, § 87(2)(b) Shots fired.”

At 23:08:30...“Six Response four, Let me get a bus rolling.”

At 23:08:35 ...“We got an EDP with a knife.”

At 23:08:39...Dispatch: “...with a knife or is there shots fired.”

At 23:08:42...“Shots fired.”

At 23:09:29...“§ 87(2)(b) § 87(2)(b) let me get a bus, shots fired.”

At 23:09:49...Dispatch: “Response Four, Anyone shot at the location?”

At 23:09:50...“Affirmative.”

CCRB Ex. 1 at 0:01:47.

At no point before, during, or after, Respondent Thompson's radio transmissions to dispatch did he check § 87(2)(b) condition, ask his partner about § 87(2)(b) condition, or perform CPR or chest compressions on § 87(2)(b) CCRB Ex. 1 at 0:01:46; Tr. 449. Likewise, Respondent Davis did not attempt to stem § 87(2)(b) bleeding, check to see if § 87(2)(b) had a pulse, or perform CPR or chest compressions. CCRB Ex. 1 at 0:01:46; Tr. 446. Respondent Davis admitted that he did nothing to try to save § 87(2)(b) life. Tr. 446. Mr. Jordan testified that in his expert opinion, Respondent Davis should have checked § 87(2)(b) condition and determined if he could possibly provide medical aid. Tr. 123. The only communication Respondent Davis had with his partner before paramedics arrived was to say, "I don't even have my fucking camera on." Tr. 451; CCRB Ex. 1 at 0:02:23 – 0:02:26. A few minutes after the shooting, Dispatch asked the Respondents if anyone had been injured and if any members of service were injured, to which Respondent Davis replied, "Nobody is injured, it's just a perp right now." Tr. 449; CCRB Ex. 1 at 0:04:47.

Discrepancies in the Force Investigation Report Demonstrate that the FID Investigation Lacked Serious Analytical Rigor

Deputy Chief Kevin Maloney, who was the commanding officer of the FID from 2016 to 2022, testified as a witness for the Respondents. He led the departmental investigation into § 87(2)(b) killing. Deputy Chief Maloney testified that he endorsed the FID report and had found no inaccuracies, Tr. 285, but at trial it was revealed that the report, and the underlying investigation, was replete with crucial factual errors and omissions. With respect to the whether § 87(2)(b) apartment door was open when the Respondents arrived, the FID report found that, "The superintendent ... directed the officers to apartment § 87(2)(b) where § 87(2)(b) resided. The officers knocked on the door, which was ajar." CCRB Ex. 12, pg. 70. Further, according to Deputy Chief Maloney, in his GO-15 interview, Respondent Davis stated that § 87(2)(b) door opened

because gravity pushed it open. Tr. 292. The evidence adduced at trial clearly demonstrated, however, that when the Respondents approached § 87(2)(b) door, it was closed, and Respondent Davis knocked on the door and then pushed it open four times. CCRB Ex. 1 at 0:00:10; CCRB Ex. 4; CCRB Ex. 6 at 0:18:53. On cross examination, Deputy Chief Maloney conceded that the door was not ajar and that this inaccuracy in the FID report was not questioned by the Use of Force Review Board. Tr. 292. He also acknowledged that the FID report did not mention that Respondent Davis knocked on and then pushed the door open four times. Tr. 303; CCRB Ex. 12.

During the FID investigation, Deputy Chief Maloney also failed to probe what techniques Respondent Thompson had learned in CIT training and whether he had used any of those techniques in his interaction with § 87(2)(b) Tr. 320. There was no comment in the FID report regarding the Respondents' failure to establish a rapport and de-escalate the situation by answering § 87(2)(b) repeated inquiries as to why they were in his home. Tr. 321. Nor does the report analyze whether the Respondents potentially could have gained useful information had they used their smartphones to access the history of the building, especially considering that the Respondents had been informed that the location had a "history of emotionally disturbed persons." Tr. 325-327. In fact, Deputy Chief Maloney did not ask the Respondents any follow up questions during their FID interviews about using available resources to obtain more information once they learned that they were dispatched to a sensitive location. Tr. 325, 327. Deputy Chief Maloney also did not ask why the Respondents did not ask about the fire department's presence at the location. Tr. 329-330. There was no comment in the FID report on whether the Respondents would have gained useful information before they interacted with § 87(2)(b) had they asked why the fire department was there. Tr. 331. To this point, Deputy Chief Maloney testified that "Yes. At the end of the investigation, it was clear that that would have been helpful." Tr. 331.

Respondent Davis admitted during his FID interview that the superintendent told him that § 87(2)(b) was “acting crazy.” Tr. 332. Yet, Deputy Chief Maloney did not ask the Respondents whether they inquired about § 87(2)(b) mental health history, why they did not call for a supervisor or backup once they received this information, or whether they had discussed tactics before knocking on the door of an individual who potentially had mental health problems. Tr. 334, 337. The FID report likewise did not comment on the Respondents’ failure to obtain more information, call for support, or discuss tactics prior to knocking on § 87(2)(b) door. Tr. 334, 338.

With respect to departmental training and guidelines on the use of TASERS, Deputy Chief Maloney testified that there are several reasons why it is preferable for members of service to issue a TASER warning before deployment. Tr. 341. One reason is to inform other officers so they can be prepared to react. Tr. 341-342. Deputy Chief Maloney did not ask Respondent Thompson why he did not issue a TASER warning prior to tasing § 87(2)(b) Tr. 340. The FID report does not comment on whether Respondent Davis may have been able to react more quickly to subdue § 87(2)(b) before he recovered from the TASER strike had Respondent Thompson issued a TASER warning. Tr. 343. Deputy Chief Maloney acknowledged that Respondent Thompson should not have dropped his TASER because he could have deployed a second cycle when § 87(2)(b) recovered. Tr. 344. He also confirmed that Respondent Thompson was trained not to hold his TASER and firearm at the same time because of the danger that the wrong weapon can be discharged. Tr. 346. The Deputy Chief knew that Respondent Thompson’s claim that he had re-holstered his firearm prior to deploying the TASER was false, yet he did not confront Respondent Thompson about his false statement. Tr. 345-346.

Regarding the Respondents' failure to render aid to § 87(2)(b) after he was shot, Deputy Chief Maloney did not ask why it took Respondent Davis over one minute to check on § 87(2)(b) condition. Tr. 354. The FID report also does not comment on this delay. CCRB Ex. 12; Tr. 355. When asked during his FID interview if he made any assessment of § 87(2)(b) injuries, Respondent Thompson responded that, "When he fell behind the door, it's -- it seemed like his eyes rolled behind his head, as Officer Davis said he wasn't in good condition." Tr. 356. Deputy Chief Maloney listened to the audio from Respondent Thompson's BWC during his investigation and admitted at trial that he did not hear Respondent Davis utter those words. Tr. 356.

Mr. Jordan's expert opinion about the FID report is telling. Mr. Jordan said, "I find that I did not agree with the [FID report] findings. Specifically, the part where it says that § 87(2)(b) created the exigency that caused Officer Thompson to discharge his firearm. I felt it was the opposite. I felt that § 87(2)(b) -- that the officers created the exigency within one minute and forty-nine seconds of being in the apartment. Didn't take their time to slow down, didn't try to de-escalate the incident. § 87(2)(b) was in his apartment; he wasn't going anywhere. There were no signs that anyone was under duress in his apartment. There was no one being held hostage. They had a lot of time, a lot of resources available to assist them. I also felt that the report lacked critical analysis of the policy implications in this case. It was a heavy analysis on tactics, but there's no correlation to what those police were leading up to § 87(2)(b) death." Tr. 127.

Respondent Thompson's Actions Were Not Justified

Respondent Thompson asserted at trial that his actions were justified. The evidence does not support that contention in any respect. Penal Law § 35.15 provides that "a person may...use physical force upon another person when and to the extent he or she reasonably believes such to be necessary to defend himself, herself or a third person from what he or she reasonably believes

to be the use of or imminent use of unlawful physical force by such other person, unless (a) the latter's conduct was provoked by the actor with intent to cause physical injury to another person; or (b) the actor was the initial aggressor..." N.Y. Penal Law § 35.15(1). § 87(2)(b) act of standing within the confines of his apartment and approaching Respondents with a kitchen knife and a stick was provoked by the Respondents' initial aggression.

Penal Law § 35.15 also provides that "a person may not use deadly physical force upon another person under circumstances specified [above] unless: ... (a) he or she is ... (ii) a police officer ... acting pursuant to section 35.30." N.Y. Penal Law § 35.15(2). Under Penal Law § 35.30, "a police officer or a peace officer, in the course of effecting or attempting to effect an arrest ... of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes such to be necessary to effect the arrest, or to prevent the escape from custody ... except that deadly physical force may be used for such purposes only when he or she reasonably believes that: ... (c) regardless of the particular offense which is the subject of the arrest or attempted escape, the use of deadly physical force is necessary to defend the police officer ... from what the officer reasonably believes to be the use or imminent use of deadly physical force." N.Y. Penal Law § 35.30(1).

The evidence at trial established that Respondents were investigating 911 calls from the superintendent and security guard of § 87(2)(b). There was no evidence that even remotely suggested that the Respondents were effecting or attempting to effect an arrest of § 87(2)(b) when Respondent Thompson shot him. Moreover, Respondent Thompson's use of deadly force was impermissible and reckless under Penal Law § 35.30 (1)(c) and (2) because § 87(2)(b) was not the subject of an arrest. Therefore, Respondent Thompson's conduct did not come within

any of the statutory definitions of justification and amounted to an offense against an innocent person.

ARGUMENT

POINT I

RESPONDENT THOMPSON SHOULD BE FOUND GUILTY BECAUSE THE CCRB PROVED BY A PREPONDERANCE OF THE EVIDENCE THAT HIS ACTIONS VIOLATED THE DEPARTMENT'S USE OF FORCE GUIDELINES AND CONSTITUTED THE CRIMES OF ASSAULT IN THE FIRST DEGREE, ATTEMPTED ASSAULT IN THE FIRST DEGREE, MENACING IN THE SECOND DEGREE, AND ASSAULT IN THE SECOND DEGREE.

The evidence presented at trial established by a preponderance that Respondent Thompson committed the crimes of Assault in the First Degree, Attempted Assault in the First Degree, Menacing in the Second Degree, and Assault in the Second Degree, and disproved by a preponderance Respondent Thompson's purported justification defense. The evidence also proved by a preponderance that Respondent Thompson violated Patrol Guide ("PG") sections 221-01 (Force Guidelines), 221-02 (Use of Force), 203-10 (Public Contact-Prohibited) and 221-04 (Firearms Discharge by Uniformed Member of Service). As such, he should be found guilty of all the Charges and Specifications.

A. Assault in the First Degree

Respondent Thompson committed the crime of Assault in the First Degree when he fired multiple shots from his firearm at § 87(2)(b) striking him twice. An individual commits Assault in the First Degree under Penal Law §120.10 (1) when, "with intent to cause serious physical injury to another person, he causes such injury ... by means of a deadly weapon or dangerous instrument." N.Y. Penal Law § 120.10 (1).

The BWC footage and Respondent Thompson's testimony established that Respondent Thompson intentionally fired his firearm four times at § 87(2)(b) and that his intention in doing

so was to strike § 87(2)(b) with the bullets fired from his firearm. § 87(2)(b) autopsy (CCRB Ex. 7) and the medical examiner's testimony established that two of the bullets struck § 87(2)(b) causing serious physical injury—§ 87(2)(b) death. Finally, Respondent Thompson's firearm constituted a "deadly weapon," which includes "any loaded weapon from which a shot readily capable of producing death or other serious physical injury may be discharged." N.Y. Penal Law §10.00 (12).

a. Use of Force PG 221-02, Force Guidelines 221-01

The use of force guidelines in the Patrol Guide contain numerous techniques that members of service should use to minimize the need for the use of force. The evidence at trial showed by a preponderance that Respondent Thompson failed to follow these guidelines when he shot § 87(2)(b) with his firearm. PG 221-01 states that, prior to using force, members of service should use de-escalation techniques, and should act in ways that increase the time, options, and resources available to handle a situation. Similarly, PG 221-02 states that members of service should utilize de-escalation techniques, should isolate and contain the subject if possible, should request the response of Emergency Service Unit if appropriate and should comply with the requirements of PG 221-13 Mentally Ill or Emotionally Disturbed Persons. PG 221-13 states, among other requirements, that when dealing with individuals who appear emotionally disturbed, members of service should attempt to slow the pace of the incident, avoid any actions that may agitate or provoke the emotionally disturbed person, and should attempt to de-escalate the situation through crisis communication techniques.

The Crisis Intervention Training videos entitled CIT Intro and Module 1 Introduction (CCRB Ex. 17 and 18), which were part of the training Respondent Thompson received, likewise

stated that when dealing with individuals who appear to be emotionally disturbed, members of service should build a rapport with the individual, try to de-escalate and slow down the situation so that there is time to call for backup and build trust. The videos also state that members of service should explain why they are there; they should not simply give orders to individuals who appear to be in crisis.

The evidence presented at trial established both that § 87(2)(b) was acting in a manner consistent with an individual who was emotionally disturbed, and that Respondent Thompson, at the time of the shooting, believed that § 87(2)(b) was an Emotionally Disturbed Person. In the moments before he was tased, § 87(2)(b) can be seen on Respondent Thompson's BWC tapping his head multiple times while stating, "Hold it, hold it, hold it, the center, the center, the center of the brain." CCRB Ex. 1 at 0:01:16-0:01:30; CCRB Ex. 6 at 0:20:00-0:29:14. Immediately after the shooting, in a message to the dispatcher, Respondent Thompson described § 87(2)(b) as "an EDP with a knife." CCRB Ex. 1 at 0:02:06-0:02:10. Despite this, Respondent Thompson did not utilize a single technique outlined in PG 221-13 before he shot § 87(2)(b).

Despite the directives of the Patrol Guide and what he had learned in CIT training, Respondent Thompson simply continued to repeat the order to drop the knife over and over to § 87(2)(b) and failed to utilize any of the techniques he was required to use before employing force. He did not attempt to de-escalate the situation, he did not try to build rapport with § 87(2)(b) he did not attempt to slow down the situation, and he did not answer § 87(2)(b) questions about why the Respondents were in his home.

B. Attempted Assault in the First Degree

An individual commits Attempted Assault in the First Degree under Penal Law §§110/120.10 (1) when, with intent to cause serious physical injury, he or she attempts to cause such injury to another by means of a deadly weapon or dangerous instrument. The evidence presented at trial established that Respondent Thompson committed every element of this crime by a preponderance of the evidence.

Respondent Thompson committed the crime of Attempted Assault in the First Degree when he fired multiple shots from his firearm at § 87(2)(b) missing him twice. The BWC footage and Respondent Thompson's testimony established that Respondent Thompson intentionally fired his gun at § 87(2)(b) four times, and that his intention in doing so was to strike § 87(2)(b) with the bullets from his firearm, which are readily capable of causing serious physical injury or death. § 87(2)(b) autopsy (CCRB Ex. 7) and Dr. Cederroth's testimony established that two of the bullets failed to strike § 87(2)(b). Finally, as explained above, Respondent Thompson's firearm constituted a "deadly weapon" under Penal Law §10.00 (12).

a. Use of Force PG 221-02, Force Guidelines 221-01

Respondent Thompson's firing of multiple shots from his firearm, even the two bullets that missed § 87(2)(b) constituted a use of force that violated PG 221-01 and PG 221-02, which are explained more fully above in argument section A.a, because Respondent Thompson failed to use the required de-escalation techniques and tactics prior to using deadly force.

C. Menacing in the Second Degree

An individual commits Menacing in the Second Degree when “he or she intentionally places or attempts to place another person in reasonable fear of physical injury, serious physical injury or death by displaying a deadly weapon, dangerous instrument or what appears to be a ... firearm.” N.Y. Penal Law §120.14(1). The evidence at trial proved by a preponderance that Respondent Thompson committed the crime of Menacing in the Second Degree when he pointed his firearm at § 87(2)(b)

The BWC footage, surveillance footage, and Respondent Thompson’s testimony established that prior to firing his TASER, Respondent Thompson took out his firearm and pointed it at § 87(2)(b) CCRB Ex. 1 at 0:00:45-0:01:30; CCRB Ex.5 at 0:00:00-0:00:22; Tr. 485-486. Respondent Thompson’s BWC recording showed that § 87(2)(b) was looking at Respondent Thompson and was in a position where he would have been able to see the firearm pointed in his direction. CCRB Ex. 1 at 0:00:45-0:01:30. As a reasonable fear of serious physical injury or death is the natural consequence of an individual having a firearm pointed at them, Respondent Thompson intended to put § 87(2)(b) in reasonable fear of serious physical injury or death. See People v. Lora, 85 A.D.3d 487, 493 (1st Dept. 2011) (finding that defendant intended to cause the natural consequence of his actions).

a. Use of Force PG 221-02, Force Guidelines 221-01

Respondent Thompson’s pointing of his firearm at § 87(2)(b) constituted a use of force that violated PG 221-01 and PG 221-02, which are explained more fully above in argument section A.a, because Respondent Thompson failed to use the required de-escalation techniques and tactics prior to using force.

D. Assault in the Second Degree

Respondent Thompson committed the crime of Assault in the Second Degree when he discharged his TASER at § 87(2)(b) striking him. An individual commits Assault in the Second Degree when, “with intent to cause physical injury to another person, he causes such injury ... by means of a deadly weapon or dangerous instrument.” N.Y. Penal Law §120.05(2).

The BWC evidence and Respondent Thompson’s testimony established that Respondent Thompson struck § 87(2)(b) with his TASER (CCRB Ex. 1 at 0:00:26-0:00:31; Tr. 487-488), and he did so with the intent to cause § 87(2)(b) physical injury. The TASER X26 CEW End User Course Lesson Plan (CCRB Ex. 16), which Respondent Thompson took on May 2, 2017 (see CCRB Ex. 14 PO Brendon Thompson’s Training Transcript, 10), explained that the TASER used by Respondent Thompson was designed to disrupt the central nervous system by means of using electrical energy sufficient to cause uncontrolled muscle contractions and override an individual’s motor responses. It does this through the delivery of 50,000 volts. CCRB Ex. 16, pg. 8. Therefore, Respondent Thompson understood that striking § 87(2)(b) with the TASER would cause physical injury.

Physical injury is defined under Penal Law §10.00(9) as impairment of physical condition or substantial pain. The evidence presented demonstrated that § 87(2)(b) suffered substantial pain after being tased. Dr. Cederroth testified that one of the TASER prongs caused a puncture wound to § 87(2)(b) thigh that may have left a permanent scar had § 87(2)(b) survived. Tr. 77-78. Although § 87(2)(b) did not survive to testify, the pain he experienced upon being shocked with 50,000 volts was evident in Respondent Thompson’s BWC video, which depicts § 87(2)(b) screaming out in apparent pain and falling to the floor when struck with the TASER

prongs. CCRB Ex. 1 at 0:00:26-0:00:31. The video evidence and Dr. Cederroth's testimony were sufficient to establish that § 87(2)(b) suffered substantial pain. People v. Huddleston, 196 A.D.3d 1098 (4th Dept. 2021) (no direct testimony as to degree of pain; testimony of doctor as to degree of injury plus photograph of injury established substantial pain). See also People v. Chiddick, 8 N.Y.3d 445 (2007) (evidence of "moderate" pain sufficient for a finding of substantial pain).

As to the final element of Assault in the Second Degree, New York courts that have addressed the issue have established that TASERS qualify as a dangerous instrument. People v. Jones, 173 A.D.3d 1062, 1064 (2d Dept. 2019); People v. Sledge, 69 Misc. 3d 859, 861 (Sup. Ct. Kings County 2020).

a. Use of Force PG 221-02

When he deployed his TASER at § 87(2)(b) Respondent Thompson violated PG 221-02 which is explained more fully above in argument section A.a, because he failed to use the required de-escalation techniques and tactics prior to using force.

b. Use of Conducted Electrical Weapon (CEW) 221-08

PG 221-08 states that CEWs may only be used against individuals in three situations. First, CEWs may be deployed against individuals who are actively resisting (individuals who are using physically evasive movements to defeat a member of service's attempt at control or who are signaling an intention to avoid being taken into custody). As the evidence demonstrated, at the time that he was tased, § 87(2)(b) was not under arrest, had not been informed that he was under arrest, and neither Respondent was intending to place him under arrest. Therefore, § 87(2)(b) could not have been actively resisting arrest. Second, CEWs may be deployed against individuals

displaying active aggression. Active aggression requires a threat or an overt act of assault. The footage from Respondent Thompson's BWC and Respondent Davis's testimony established that prior to being tased, § 87(2)(b) did not use, attempt to use, or threaten to use force against either Respondent. Tr. 432-433. Finally, CEWs may be deployed to prevent individuals from physically injuring themselves or others. As stated above, § 87(2)(b) did not use, attempt to use, or threaten to use force, nor did he threaten or attempt to injure himself. Therefore, none of the situations that justify the deployment of a TASER were present, and Respondent Thompson violated the Patrol Guide when he tased at § 87(2)(b)

POINT II

RESPONDENT THOMPSON SHOULD BE FOUND GUILTY BECAUSE THE CCRB DISPROVED BY A PREPONDERANCE OF THE EVIDENCE THE DEFENSE OF JUSTIFICATION

a. Justification is Not an Available Defense Where Respondent Thompson Was the Initial Aggressor

The defense of justification is not available to Respondent Thompson for the charges of Assault in the First Degree, Attempted Assault in the First Degree, Menacing the Second Degree, or Assault in the Second Degree. The defense of justification is not available to an actor who is the initial aggressor. N.Y. Penal Law § 35.15(1)(b); People v. Petty, 7 N.Y.3d 277 (2006) (when justification is at issue, the trier of fact must determine whether the defendant was the initial aggressor); Matter of Mondy E., 121 A.D.3d 785 (2d Dept. 2014). The initial aggressor is the "one threatening to use or using physical force." People v. Baez, 118 A.D. 2d 507, 508 (1st Dept. 1986).

The evidence introduced at trial established by a preponderance that Respondent Thompson was the initial aggressor in this incident. Respondent Thompson's BWC video and the testimony of both Respondents established that shortly after the Respondents opened § 87(2)(b)

§ 87(2)(b) door, Respondent Thompson took out his TASER and pointed it at § 87(2)(b) CCRB Ex. 1 at 0:00:24-0:00:43; Tr. 334; Tr. 485. This was clearly a threat by Respondent Thompson to use force against § 87(2)(b) Respondent Thompson then deployed his TASER, causing both prongs to enter § 87(2)(b) body, which constituted an actual use of physical force. Prior to being tased, § 87(2)(b) did not use or threaten physical force. Tr. 432-433. The mere holding of a knife in one's own apartment and refusing to put it down when ordered, unaccompanied by any physical threats or acts, did not make § 87(2)(b) an initial aggressor. *Cf.* CJI2d [NY] General Applicability, Justification of Person by Physical Force (“Arguing, using abusive language, calling a person names, or the like, unaccompanied by physical threats or acts, does not make a person an initial aggressor and does not justify physical force.”).

b. Justification is Not Available to Respondent Thompson as he Provoked § 87(2)(b) Conduct.

Justification is not an available defense for the use of force against another when the other person's actions were provoked by the Respondent acting with intent to cause physical injury. N.Y. Penal Law §35.15 (1)(a). The evidence at trial established by a preponderance that § 87(2)(b) actions in advancing towards Respondents Thompson and Davis immediately before he was shot were provoked by Respondent Thompson intentionally tasing § 87(2)(b) As such, the justification defense is not available to Respondent Thompson for the charges of Assault in the First Degree and Attempted Assault in the First Degree.

Respondent Thompson intentionally fired his TASER at § 87(2)(b) striking him, and when Respondent Thompson did so, his intent was to cause § 87(2)(b) physical injury. Respondent Thompson knew from his CEW training that TASERS are designed to disrupt the central nervous system by delivering 50,000 volts of electrical energy which can cause

uncontrolled muscle contractions and override an individual's motor responses. CCRB Ex. 16, pg. 8. As explained above (see Section D), the evidence established that § 87(2)(b) experienced substantial pain as Dr. Cederroth testified that one of the TASER prongs caused a puncture wound to § 87(2)(b) thigh, Tr. 77-78, and the footage from Respondent Thompson's BWC shows that § 87(2)(b) screamed out in apparent pain and fell to the floor when struck with the TASER prongs. CCRB Ex. 1 at 0:00:26-0:00:31.

§ 87(2)(b) action in approaching the Respondents was the foreseeable result of Respondent Thompson tasing him. Respondent Thompson testified that he knew that the TASER cycle lasted five seconds and that tased individuals can recover quickly after those five seconds. Tr. 535. From the questions that § 87(2)(b) asked when the Respondents opened his door, it was obvious that he was unhappy with the Respondents presence and wanted them to leave. It was therefore foreseeable that § 87(2)(b) would become even more upset, and perhaps aggressive, upon being tased. The marked contrast in § 87(2)(b) behavior before and after being tased—going from being upset to becoming threatening—established that it was the tasing that provoked § 87(2)(b) to approach the Respondents.

c. Justification is Not Available to Respondent Thompson as He Was Not Making an Arrest.

Under Penal Law § 35.30(1), a police officer is justified in using force in the course of effecting or attempting to effect an arrest or in preventing or attempting to prevent an individual from escaping custody. This defense is not available to Respondent Thompson for the charges of Assault in the First Degree, Attempted Assault in the First Degree, Menacing the Second Degree, or Assault in the Second Degree as the evidence established by a preponderance that, at the time

he used force against § 87(2)(b) Respondent Thompson was not arresting or attempting to arrest § 87(2)(b) nor was § 87(2)(b) attempting to escape custody.

There is no evidence that Respondent Thompson was attempting to place § 87(2)(b) under arrest when he used force against him. There is no evidence that Respondent Thompson was attempting to detain § 87(2)(b) for the purposes of transporting him to a medical facility. Respondent Thompson testified that he and Respondent Davis went to § 87(2)(b) apartment to interview him, get his side of the story, and make a report. Tr. 480. Their intent was not to arrest or detain § 87(2)(b) See People v. Grim, 166 A.D.2d 264 (1st Dept. 1990) (Penal Law § 35.30 (1) defense inapplicable as there was no evidence of an attempt to arrest).

Similarly, there was no evidence presented that § 87(2)(b) was attempting to escape custody. § 87(2)(b) was not in custody at any point during the incident. In addition, as evidenced by the entirety of the BWC footage and the Respondents' testimony, § 87(2)(b) never attempted to escape from his apartment. Tr. 433-434. As was clear from his statements to the officers, it was Respondents Thompson and Davis whom he wanted to leave.

POINT III

RESPONDENT THOMPSON AND RESPONDENT DAVIS SHOULD BE FOUND GUILTY BECAUSE THE CCRB PROVED BY A PREPONDERANCE OF THE EVIDENCE THAT RESPONDENTS' ACTIONS VIOLATED DEPARTMENTAL GUIDELINES AND CONSTITUTED THE CRIME OF CRIMINAL TRESPASS IN THE SECOND DEGREE

A. Criminal Trespass in the Second Degree

The evidence presented at trial established by a preponderance that both Respondent Thompson and Respondent Davis committed the crime of Criminal Trespass in the Second Degree

when they unlawfully entered § 87(2)(b) apartment. Under Penal Law § 140.15 (1), an individual is guilty of Criminal Trespass in the Second Degree when he knowingly enters or remains unlawfully in a dwelling. An individual acts knowingly with respect to conduct or to a circumstance defined by a statute defining an offense when he is aware that his conduct is of such nature or that such circumstance exists. N.Y. Penal Law § 15.05 (2).

The evidence established that Respondent Thompson knowingly entered § 87(2)(b) apartment. CCRB Ex. 4 at 00.22–00.29 clearly shows Respondent Thompson breaching the threshold of the doorway by placing his body inside the door frame of § 87(2)(b) apartment. Respondent Davis admitted that he entered § 87(2)(b) apartment, Tr. 417, and the trial evidence showed that he knowingly entered § 87(2)(b) apartment on two occasions. CCRB Ex. 1 at 00.17 – 00.32 and CCRB Ex. 4 at 00.30 – 00.50 both show Respondent Davis breaking the threshold of the doorway by placing his torso, foot, and arms inside the door frame of § 87(2)(b) apartment and using his arm to push and keep the door open. CCRB Ex. 5 at 00.22 – 00.30 shows Respondent Davis place his entire body inside § 87(2)(b) apartment.

An entry is effectuated in a dwelling or building whenever an individual intrudes within that building or dwelling with any part of their body, however slightly. People v. King, 61 N.Y.2d 550 (1984); People v. DelCerro, 299 A.D.2d 160 (1st Dept. 2002) (defendant’s hand and torso inside a window constitutes entry); People v. Nelson, 186 A.D.3d 1404 (2d Dept. 2020); People v. Smith, 161 A.D.2d 817 (2d Dept. 1990) (defendant kneeling in front of partially opened door with portions of body extending through door into the house constitutes entry); People v. Tragani, 113 Misc. 2d 852 (Sup. Ct New York County 1982) (a hand reaching inside an open window or a head peering inside through an open door constitute entries). Here, the video evidence

demonstrates that both Respondents knowingly and intentionally entered § 87(2)(b) apartment when they each placed portions of their body through the threshold of the door.

The Respondents' entries into § 87(2)(b) apartment were also unlawful. Respondent Thompson and Respondent Davis possessed no warrant to enter § 87(2)(b) apartment and § 87(2)(b) through his repeated questioning as to why they were in his home (CCRB Ex. 1 at 00.30 – 00.41)—clearly indicated to the Respondents that they did not have his consent to enter his apartment. Upon opening the door, the Respondents were able to confirm that no one other than § 87(2)(b) was in the apartment and that no one was in any danger. Tr. 414. While it is true that an honest, but inaccurate, belief that one is licensed or privileged to enter a property will defeat a charge of criminal trespass, People v. Basch, 36 N.Y.2d 154 (1975), there is no evidence that Respondent Thompson or Respondent Davis possessed such a belief when they entered § 87(2)(b) apartment. Indeed, neither Respondent testified that they believed they were entitled to enter the apartment, nor did they testify as to what the basis they would have had for such a belief.

Under Penal Law § 140.00(3), a “dwelling” is a building that is usually occupied by a person lodging therein at night. § 87(2)(b) apartment clearly qualifies as a dwelling. There was testimony that § 87(2)(b) was an apartment building that housed individuals, Tr. 405, and this incident occurred in the apartment occupied by § 87(2)(b) Tr. 391.

a. PG 203-10 Public Conduct – Prohibited

PG 203-10 states that members of service are prohibited from engaging in conduct that is prejudicial to the good order, efficiency, and discipline of the department. As the evidence presented at trial proved by a preponderance that Respondent Thompson and Respondent Davis knowingly and unlawfully entered § 87(2)(b) apartment, their actions also constituted a violation of this section of the Patrol Guide.

POINT IV

RESPONDENTS THOMPSON AND DAVIS SHOULD BE FOUND GUILTY BECAUSE THE CCRB PROVED BY A PREPONDERANCE OF THE EVIDENCE THAT RESPONDENTS' ACTIONS VIOLATED THE DEPARTMENT'S GUIDELINES AND CONSTITUTED THE CRIME OF RECKLESS ENDANGERMENT IN THE SECOND DEGREE

A. Reckless Endangerment in the Second Degree

The evidence presented at trial established by a preponderance that Respondent Thompson and Respondent Davis committed the crime of Reckless Endangerment in the Second Degree when they failed to render aid to § 87(2)(b) after Respondent Thompson shot him. Under Penal Law §120.20, an individual commits Reckless Endangerment in the Second Degree when he recklessly engages in conduct which creates a substantial risk of serious physical injury to another person.

§ 87(2)(b) autopsy (CCRB Exhibit 7) and the testimony of Dr. Cederroth established that two bullets fired from Respondent Thompson's gun hit § 87(2)(b) causing extensive damage to his body. Tr 70-75. Respondent Thompson knew that § 87(2)(b) had been shot and was lying behind the door to his apartment, possibly fatally injured. Respondent Thompson testified that he had been trained in the use of lifesaving techniques and that the Patrol Guide required him to provide aid to individuals who had been injured by being shot by a member of service, Tr. 551, yet he did not provide any aid to § 87(2)(b) Tr. 553. The evidence established that Respondent Davis also knew that § 87(2)(b) had been struck by his partner's firearm and was lying behind the door to his apartment, possibly fatally injured. Tr. 445. Respondent Davis testified that he had been trained in the use of lifesaving techniques and that the Patrol Guide required him to provide aid to individuals who had been shot by a member of service. Tr. 448. Respondent Davis also testified that he did not provide any aid to § 87(2)(b) Tr. 446.

Under N.Y. Penal Law §15.05(3), an individual behaves “recklessly with respect to a result when he or she is aware of and consciously disregards a substantial and unjustifiable risk that such a result will occur... The risk must be of such a nature and degree that disregard thereof constitutes a gross deviation from the standard of conduct that a reasonable person would observe in the situation.” The Respondents’ failure to render aid was reckless. Both Respondents were aware of, and disregarded, a substantial risk that § 87(2)(b) was seriously injured. Despite the knowledge that § 87(2)(b) was, at the very least, seriously injured, both Respondents ignored their training and the Patrol Guide and chose to render no aid to § 87(2)(b).

The evidence presented a trial proved by a preponderance that the Respondent’s failure to render any aid whatsoever to § 87(2)(b) increased the risk that § 87(2)(b) would suffer serious physical injury. Dr. Cederroth, who performed § 87(2)(b) autopsy, testified that there was a very remote possibility that § 87(2)(b) could have survived his injuries if he had received immediate medical attention. Tr. 76. Even though the chance of § 87(2)(b) surviving with medical intervention was approaching zero, it was not zero—it remained a “possibility.” Tr. 76. Reckless Endangerment in the Second Degree merely requires *an* increased risk, not a specific quantity or amount of increased risk. See People v. Galatro, 84 N.Y.2d 160 (1994) (increased risk sufficient for reckless endangerment existed the moment defendants left victim lying on the street, regardless of the fact that the victim received no further injuries due to this conduct and the fact that bystanders quickly alleviated the increased risk).

a. PG 221-04 Firearms Discharge By Uniformed Member of Service

PG 221-04 states that if an individual is injured by the discharge of a firearm by a member of service, an officer must render aid to that individual. Respondents Thompson and Davis both violated this Patrol Guide provision when they failed to render aid to § 87(2)(b) after Respondent

Thompson had shot him. Respondent Thompson fired his firearm at § 87(2)(b) four times, striking him twice. The evidence established that the prone figure of § 87(2)(b) lying on the floor after being shot was visible to the officers, yet they did nothing. This was a clear violation of the requirements of PG 221-04.

CONCLUSION

For the above stated reasons, this court must find that the crime exception was satisfied because CCRB established every element of the crimes of assault in the first degree, attempted assault in the first degree, assault in the second degree, menacing in the second degree, criminal trespass in the second degree, and reckless endangerment in the second degree. This court must reject Respondent's purported justification defense because such a defense was disproven by a preponderance of the evidence,

DATED: June 2, 2023
New York, New York

Respectfully submitted,

Andre Applewhite

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ARVA RICE
INTERIM CHAIR

Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

October 11, 2023

Re: Police Officers Brendan Thompson & Herbert Davis
Disciplinary Cases Nos. 2021-23558 & 2021-23559

Commissioner Caban:

The above-referenced case was tried on April 24 and 25, and May 11 and 12, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department (“hereinafter “NYPD”). The CCRB has reviewed the September 20, 2023, draft decision of Deputy Commissioner – Trials, Rosemarie Maldonado. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

§ 87(2)(b) life came to an untimely and unnecessary end due to the actions of Respondents Brendan Thompson and Herbert Davis on April 14, 2019, when they unlawfully entered § 87(2)(b) home following a 911 call. Within seconds of that entry, Respondent Thompson pointed and fired his Taser at § 87(2)(b) and then discharged four shots from his firearm, two of which hit § 87(2)(b) and caused grave injuries. Both Respondents failed to render any aid as § 87(2)(b) lay dying on the floor of his apartment.

The draft decision recommends dismissal of all the charges and specifications on the ground that they are time-barred because the CCRB did not meet the crime exception under Civil Service Law § 75(4). As will be explained in more detail below, however, the CCRB met its burden and proved by a preponderance of the evidence that the Respondents; acted in contravention of their training and the Patrol Guide; that their actions constituted the crimes of criminal trespass in the second degree, assault in the first and second degree, attempted assault in

the first degree, menacing in the second degree, and reckless endangerment in the second degree; and that Respondent Thompson's use of force was not justified.

Notably, the draft decision recognized that the Respondents' actions were "troubling" and described the use of force as "tactically premature," and did not dispute that the evidence made out the elements of assault in the first degree and attempted assault in the first degree under the Penal Law. However, the draft decision reached the wrong conclusion on the issue of justification and incorrectly determined that the Taser, as used by Respondent Thompson, was not a "dangerous instrument," and that the elements of menacing and reckless endangerment were not met. The recommendation to dismiss the specification based on criminal trespass in the second degree was also in error as the charges sufficiently stated, and the evidence at trial clearly proved, that the Respondents unlawfully entered § 87(2)(b) apartment.

As such, the recommendations in the draft decision should be rejected and you should find the Respondents guilty of all of the following charges and specifications and accept the CCRB's recommended penalty of Termination for both Respondents.

Respondent, Police Officer Brendan Thompson, was charged with the following:

1. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, used force without police necessity in that, with the intent to cause serious physical injury, he intentionally fired multiple shots from his gun at § 87(2)(b) causing serious physical injury. (As amended).

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §120.10(1)

ASSAULT IN THE FIRST DEGREE

2. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, intentionally used force without police necessity in that in attempting to cause serious physical injury, he intentionally fired multiple shots from his gun at § 87(2)(b) (As amended).

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §§110/120.10(1)

ATTEMPTED ASSAULT IN
THE FIRST DEGREE

3. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he intentionally

placed or attempted to place § 87(2)(b) in reasonable fear of physical injury by pointing his gun at § 87(2)(b) without police necessity. (As amended).

P.G. 221-01

FORCE GUIDELINES

P.G. 221-02

USE OF FORCE

Penal Law §120.14(1)

MENACING IN THE SECOND
DEGREE

4. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that with intent to cause physical injury to § 87(2)(b) he caused such injury to him by intentionally firing a dart from his conducted electrical weapon into § 87(2)(b) without police necessity. (As amended).

P.G. 221-08

USE OF CONDUCTED
ELECTRICAL WEAPONS (CEW)

P.G. 221-02

Penal Law §120.05(2)

USE OF FORCE
ASSAULT IN THE SECOND
DEGREE

5. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he knowingly entered unlawfully within a dwelling when he entered § 87(2)(b) without sufficient legal authority or permission.

P.G. 203-10

PUBLIC CONTACT – PROHIBITED

Penal Law §140.15(1)

CRIMINAL TRESPASS IN THE
SECOND DEGREE

6. Police Officer Brendan Thompson, on or about April 14, 2019, at approximately 2300 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as member of the New York City Police Department, in that he recklessly engaged in conduct which created a substantial risk of serious physical injury to § 87(2)(b) when he failed to render aid to § 87(2)(b) without police necessity. (As amended).

P.G. 221-04

FIREARMS DISCHARGE BY
UNIFORMED MEMBERS OF
SERVICE

Penal Law §120.20

RECKLESS ENDANGERMENT IN
THE SECOND DEGREE

Respondent, Police Officer Herbert Davis, was charged with the following:

1. Police Officer Herbert Davis, on or about April 14, 2019, at approximately 2300, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he knowingly entered unlawfully within a dwelling when he entered § 87(2)(b) without sufficient legal authority or permission.

P.G. 203-10

PUBLIC CONTACT – PROHIBITED

Penal Law §140.15(1)

CRIMINAL TRESPASS IN THE
SECOND DEGREE

2. Police Officer Herbert Davis, on or about April 14, 2019, at approximately 2300, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he knowingly entered unlawfully within a dwelling when he entered § 87(2)(b) as second time, without sufficient legal authority or permission.

P.G. 203-10

PUBLIC CONTACT – PROHIBITED

Penal Law §140.15(1)

CRIMINAL TRESPASS IN THE
SECOND DEGREE

3. Police Officer Herbert Davis, on or about April 14, 2019, at approximately 2307 hours, while assigned to the 046 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as member of the New York City Police Department, in that he did not render medical aid to § 87(2)(b)

P.G. 221-04

FIREARMS DISCHARGE BY
UNIFORMED MEMBERS OF
SERVICE

Penal Law §120.20

RECKLESS ENDANGERMENT IN
THE SECOND DEGREE

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Please see the CCRB's June 2, 2023, post-trial brief, pages 3-22, for a summary of the evidence presented at trial.

ARGUMENT

I. Respondents Thompson and Davis Committed Criminal Trespass in the Second Degree When They Unlawfully Entered and Remained in § 87(2)(b) Home.

Although left unaddressed in the draft decision, the evidence presented at trial established by a preponderance that both Respondent Thompson and Respondent Davis committed Criminal Trespass in the Second Degree when they unlawfully entered § 87(2)(b) apartment. Under N.Y. Penal Law § 140.15(1), an individual is guilty of Criminal Trespass in the Second Degree when he knowingly enters or remains unlawfully in a dwelling. An individual acts knowingly with respect to conduct or to a circumstance defined by a statute defining an offense when he is aware that his conduct is of such nature or that such circumstance exists. N.Y. Penal Law § 15.05(2).

The video evidence and Respondents' testimony established that both Respondents knowingly and intentionally entered § 87(2)(b) apartment when they each placed portions of their body through the threshold of the door (CCRB Ex. 4 at 00.22–00.29; CCRB Ex. 1 at 00.17 – 00.32; CCRB Ex. 4 at 00.30 – 00.50; Tr. 417). An entry is effectuated in a dwelling or building whenever an individual intrudes within that building or dwelling with any part of their body, however slightly. People v. King, 61 N.Y.2d 550 (1984); People v. DelCerro, 299 A.D.2d 160 (1st Dept. 2002) (defendant's hand and torso inside a window constitutes entry); People v. Nelson, 186 A.D.3d 1404 (2d Dept. 2020). The Respondents' entries into § 87(2)(b) apartment were unlawful. They possessed no warrant to enter § 87(2)(b) apartment, the

circumstances did not create an exception to the warrant requirement, and § 87(2)(b) through his repeated questioning as to why they were in his home (CCRB Ex. 1 at 00.30 – 00.41)—clearly indicated to the Respondents that they did not have his consent to enter or remain in his apartment. Upon opening the door, the Respondents were able to confirm that no one other than § 87(2)(b) was in the apartment and that no one was in any danger (Tr. 414). While it is true that an honest, but inaccurate, belief that one is licensed or privileged to enter a property will defeat a charge of criminal trespass, People v. Basch, 36 N.Y.2d 154 (1975), there is no evidence that either Respondent possessed such a belief when they entered § 87(2)(b) apartment. Indeed, neither Respondent testified that they believed they were entitled to enter the apartment, nor did they testify as to what the basis they would have had for such a belief. The only testimony as to the Respondents’ belief that they held at the moment of entry was Respondent Thompson’s testimony that they were there to conduct an investigation (Tr. 556), a belief that does not justify a warrantless entry into a dwelling. It was this unlawful entry that started the chain of events that led to § 87(2)(b) unjustified death.

II. The Trial Commissioner Erred in Considering Justification as a Defense.

A. Respondents Were Not Effecting an Arrest, Therefore Penal Law § 35.30(1) Does Not Provide a Justification Defense for Respondent Thompson’s Use of Force.

The draft decision incorrectly concluded that Respondent Thompson could invoke the justification defense under Penal Law § 35.30(1) for the charges of Assault in the First Degree, Attempted Assault in the First Degree, Assault in the Second Degree, and Menacing in the Second Degree (Decision, 27-29). This conclusion was based upon the Trial Commissioner’s determination that, at the time Respondent Thompson used force upon § 87(2)(b) the officers possessed enough information to believe that he had committed an offense and there was a basis

to place him under arrest (Decision, 28, 29). However, that is insufficient to meet the threshold to assert this defense.

The plain language of the statute states that an officer is only entitled to this defense when the force is used in the course of effecting an arrest. Penal Law § 35.30(1) states, in pertinent part, that:

“A police officer or a peace officer, *in the course of effecting or attempting to effect an arrest...* of a person whom he or she reasonably believes to have committed an offense, may use physical force when and to the extent he or she reasonably believes to be necessary to effect the arrest...” (emphasis added).

It is a long-held axiom of statutory interpretation that, when the language of a statute is clear and unambiguous, courts must give effect to its plain meaning:

“In construing statutes, it is a well-established rule that resort must be had to the natural signification of the words employed, and if they have a definite meaning, which involves no absurdity or contradiction, there is no room for construction and the courts have no right to take away from that meaning.”

Tompkins v. Hunter, 149 N.Y. 117, 122-123 (1896). *See also* State of New York v. Patricia II, 6 N.Y.3d 160, 162 (2006). Penal Law § 35.30(1) is precisely such a statute. It unambiguously states that for an officer to invoke justification under this statute, he or she must be *effectuating or attempting to effectuate an arrest*. It does not state that it applies in situations where there might be probable cause to make an arrest, but the officer has made no attempt to do so. The legislature could have chosen to include this scenario in the statute, but it did not. “[I]t has long been held that where a statute describes the particular situations in which it is to apply, ‘an irrefutable inference must be drawn that which is omitted or not included was intended to be omitted or excluded.’” Golden v. Koch, 49 N.Y.2d 690 (1980) (quoting McKinney’s Cons Laws of NY, Book 1, Statutes, § 240).

While the draft decision characterizes the CCRB’s interpretation of the statute as “unreasonably restrictive” (Decision, 27), it is, in fact, the only interpretation that is permissible under long-held principles of statutory interpretation. The defense is meant to be interpreted narrowly, not broadly. See People v. Daniels, 2017 NYLJ LEXIS 2553 *4 (Crim. Ct New York County 2017) (recognizing that actions are only justified if they “fall under the v[e]ry narrow circumstances carved out by these [justification] defenses” specified in Article 35 of the Penal Law). See also People v. Pons, 68 N.Y.2d 264, 267 (1986) (the justification defense only recognizes “the use of force to be privileged *under certain circumstances*”) (emphasis added); Brown v. Albion, 128 Misc. 2d 586, 592 (Supreme Court Orleans County 1985) (“Penal Law § 35.30, in particular, deals with the defense of justification when officers use physical force to make an arrest.”). Instead of following this precedent, however, the decision inserts language into the statute that is simply not there—that Penal Law § 35.30(1) applies in situations where officers are not actually effecting an arrest, but potentially possess probable cause to do so—and expands the statute in a way that the Legislature never intended.

That Respondent Thompson’s use of force was not made in an attempt to effectuate an arrest, is apparent from the very trial testimony cited in the draft decision (Decision, 28):

So basically, we were going to conduct an investigation. We thought we were going to be taking a report, or we had a possible arrest situation. So, we just knocked on his door and were trying to speak to § 87(2)(b) (Tr. 556).

Even if probable cause to arrest § 87(2)(b) existed, it is clear that neither Respondent was attempting to effectuate an arrest, and there is no evidence that either Respondent had decided that § 87(2)(b) was going to be arrested. As a result, the evidence established by a preponderance that Respondent Thompson’s use of force cannot be justified under Penal Law § 35.30(1).

B. Respondent Thompson Was the Initial Aggressor and Thus Was Not Entitled to a Justification Defense.

We also disagree with the draft decision’s assertion that the trial evidence established by a preponderance that Respondent Thompson could invoke the justification defense under Penal Law § 35.15(1)(b) (Decision, 29). To the contrary, the evidence presented at trial established that Respondent Thompson was the initial aggressor in this encounter and thus was not entitled to the defense. N.Y. Penal Law § 35.15(1)(b); People v. Petty, 7 N.Y.3d 277 (2006) (when justification is at issue, the trier of fact must determine whether the defendant was the initial aggressor); Matter of Mondy E., 121 A.D.3d 785 (2d Dept. 2014). The initial aggressor is “the first person in an altercation who uses or threatens the imminent use of [] physical force,” People v. Brown, 33 N.Y.3d 316, 320 (2019); People v. Baez, 118 A.D. 2d 507, 508 (1st Dept. 1986). The fact that Respondent Thompson is a police officer does not eliminate the initial aggressor exception to the eligibility of the justification defense, as the draft decision seems to suggest (Decision, 31).

Respondent Thompson’s body-worn camera (“BWC”) video and the testimony of both Respondents established that shortly after the Respondents opened § 87(2)(b) door, Respondent Thompson took out his Taser and pointed it at § 87(2)(b) (CCRB Ex. 1 at 0:00:24-0:00:43; Tr. 334; Tr. 485). This was clearly a threat to use force against § 87(2)(b). Respondent Thompson then deployed his Taser, causing both prongs to enter § 87(2)(b) body, which constituted an actual use of physical force. Prior to being tased, § 87(2)(b) did not use or threaten physical force (Tr. 432-433). The mere holding of a knife in one’s own apartment and refusing to put it down when ordered, unaccompanied by any physical threats or acts, did not turn the knife into a “weapon rather than a utensil,” as the draft decision claims (Decision, 30 (quoting In re Jaime D., 59 N.Y.2d 589, 593 (1983))). Cf. CJI2d [NY] General Applicability, Justification of Person by Physical Force (“Arguing, using abusive language, calling a person

names, or the like, unaccompanied by physical threats or acts, does not make a person an initial aggressor and does not justify physical force.”). The law requires more. For instance, in In re Jaime, the case cited in the draft decision, a kitchen knife was considered dangerous where it was secreted in the suspect’s waistband and he was reluctant to give it to police when asked after he was stopped for being involved in an attempted gunpoint robbery. Notably, the Court in that case relied heavily on the fact that the suspect’s actions indicated that he “considered it a weapon of significance to the police and not an innocent utilitarian utensil.” In re Jaime, 59 N.Y.2d at 593-594. Here, on the other hand, § 87(2)(b) repeatedly told the Respondents that he had the knife because he was cooking. He did not wield it or threaten to use it in a manner other than as a kitchen utensil.

While it is undoubtedly true that “the law does not require that individuals wait until they are actually struck or wounded before using reasonable force” (Decision, 30), the law *does* require that force first be used, attempted, or threatened. This is illustrated in People v. Valentin, 29 N.Y.3d 57 (2017), the case cited in the draft decision (Decision, 30). In Valentin, there was testimony that the decedent had picked up a mop handle, approached and swung the mop handle at the defendant, then he was shot by the defendant. Id. at 60. In short, that decedent had *actually attempted* to assault the defendant. This, the Court of Appeals concluded, was sufficient to merit an instruction on the initial aggressor exception to the justification defense. Id. at 61. This is in marked contrast to the facts in the instant case, where the evidence at trial established, both through testimony and by video, that when the Respondents’ arrived, § 87(2)(b) was inside his home, *did not* approach the Respondents, *did not* attempt to assault the Respondents, and *did not* threaten to do so. As such, it was Respondent Thompson who initiated the physical force without justification by pointing and firing his Taser at § 87(2)(b) which resulted in the unnecessary

escalation of the situation to the point where Respondent Thompson then used deadly physical force. Under those circumstances, Respondent Thompson is precluded from asserting that his actions were justified under Penal Law § 35.15.

III. The Trial Evidence Established Assault in the First Degree - Respondent Thompson.

As acknowledged by the draft decision, it is “uncontested” (Decision, 24), that the evidence presented at trial established the elements of assault in the first degree under N.Y. Penal Law § 120.10(1), in that the evidence conclusively showed that with the intent to cause serious physical injury, Respondent Thompson caused such serious physical injury to § 87(2)(b) by means of a deadly weapon.

The BWC footage and Respondent Thompson’s own testimony established that Respondent Thompson intentionally fired his firearm four times at § 87(2)(b) and that his intention in doing so was to strike § 87(2)(b) with the bullets fired from his firearm. § 87(2)(b) autopsy (CCRB Ex. 7) and the medical examiner’s testimony verified that two of the bullets struck § 87(2)(b) causing serious physical injury—§ 87(2)(b) death. Finally, Respondent Thompson’s firearm constituted a “deadly weapon,” as it was a “loaded weapon from which a shot readily capable of producing death or other serious physical injury may be discharged.” N.Y. Penal Law § 10.00(12).

IV. The Trial Evidence Established the Elements of Attempted Assault in the First Degree – Respondent Thompson.

The draft decision also does not contest that when Respondent Thompson fired the two shots that missed § 87(2)(b) his actions satisfied the elements of Attempted Assault in the First Degree, N.Y. Penal Law §§ 110/120.10(1), in that he attempted to cause serious physical injury to § 87(2)(b) by means of a deadly weapon.

Respondent Thompson committed the crime of Attempted Assault in the First Degree when he fired multiple shots from his firearm at § 87(2)(b) missing him twice. The BWC footage and Respondent Thompson’s testimony established that Respondent Thompson intentionally fired his gun, which was a “deadly weapon,” at § 87(2)(b) four times, and that his intention in doing so was to strike § 87(2)(b) with the bullets from his firearm, which was readily capable of causing serious physical injury or death. § 87(2)(b) autopsy (CCRB Ex. 7) and Dr. Cederroth’s testimony established that two of the bullets failed to strike § 87(2)(b) (Tr. 70).

V. The Trial Evidence Established the Elements of Menacing in the Second Degree – Respondent Thompson.

The evidence established that Respondent’s Thompson’s actions in pointing his firearm at § 87(2)(b) satisfied the elements of Menacing in the Second Degree under N.Y. Penal Law § 120.14(1), in that he intentionally placed or attempted to place § 87(2)(b) in fear of physical injury, serious physical injury or death by displaying a firearm. This is illustrated in the portion of Respondent Thompson’s testimony quoted in the draft decision, where Respondent Thompson stated that, “I took out my firearm. I pointed at him in hopes that he would – he would drop the weapons; the knife, the stick” (Tr. 486). In this testimony, Respondent Thompson admitted that when he pointed his firearm at § 87(2)(b) he intentionally attempted to place § 87(2)(b) in fear of serious physical injury or death (i.e., getting shot), in the hopes that this fear would cause § 87(2)(b) to drop the knife and the stick. In her draft decision, Commissioner Maldonado asserts that the menacing in the second charge must fail because it “disregards the legitimate law enforcement context in which Respondent Thompson removed his firearm and pointed it at § 87(2)(b) CCRB disagrees with this assessment. § 87(2)(b) was

standing in his apartment holding a stick and a knife having already repeatedly explained to the Respondents that he had a knife because he was cooking (CCRB Ex. 1 at 0:00:45 - 0:00:45; CCRB Ex. 6 at 0:19:28 – 0:19:35; Tr. 433, 528). § 87(2)(b) never advanced toward the Respondents in a menacing manner, nor did he ever threaten to use the stick and/or the knife to harm the Respondents. Therefore, there was no legitimate purpose for Respondent Thompson to draw and point his weapon at § 87(2)(b) at this specific time.

VI. The Deputy Commissioner Erred in Concluding that Respondent Thompson’s Deployment of his Taser Did not Satisfy the “Dangerous Instrument” Element of Assault in the Second Degree.

The Court was incorrect in finding that the evidence at trial failed to establish the elements of Penal Law § 120.05(2) (Decision, 33). Penal Law § 10.00(13) defines dangerous instrument as any instrument, article or substance, including a “‘vehicle’ as that term is defined in this section, which under the circumstances in which it is used, attempted to be used or threatened to be used, is readily capable of causing death or other serious physical injury.”

The evidence clearly demonstrated that the Taser, as used by Respondent Thompson, constituted a “dangerous instrument” under Penal Law § 10.00(13). The deployment of a Taser by a police officer on a civilian causing “real agony” has been found to be sufficient for a charge of Assault in the Second Degree. Kennedy v. City of New York, 2019 N.Y. Misc. LEXIS 6156, *10 (Supreme Court New York County 2019). The Second Department has held that the mere threatening of another with use of a Taser is sufficient for a finding that it was a “dangerous instrument.” People v. Jones, 173 A.D.3d 1062, 1064 (2d Dept. 2019). In this case, of course, Respondent Thompson actually deployed his Taser. In addition, the location in which § 87(2)(b) was struck with the Taser prong—the chest—established that, as used, the Taser was deployed as a “dangerous instrument.” See People v. Richard, 30 A.D.3d 750 (3d Dept. 2006)

(finding the use of a stun gun on a victim's abdomen to constitute use of that weapon as a "dangerous instrument").

The facts of the case cited in the draft decision, People v. Hall, 18 N.Y.3d 122 (2011), are distinguishable. In Hall, the prosecution failed to meet its evidentiary burden because the only description of the weapon used by the defendants introduced at trial was that it was a "stun gun," that the defendant placed against the complainant's chest a number of times, causing a burning sensation and temporary incapacitation. Id. at 128. "The stun gun was not recovered, and no expert or other witness was called to explain to the jury what a stun gun is, or what it can do." Id. Given the dearth of evidence, the Court in Hall ruled that the jury did not have enough to come to the conclusion that the "stun gun" constituted a "dangerous instrument" in the manner in which it was used. Id.

In this case, however, the evidence presented at this trial expressly demonstrated that the way Respondent Thompson deployed his Taser prongs into § 87(2)(b) body caused § 87(2)(b) to scream out in obvious pain and fall to the floor (CCRB Ex. 1 at 0:00.26-0:00:31). The evidence also demonstrated that the Respondent Thompson's Taser delivered 50,000 volts into § 87(2)(b) body, overriding his central nervous system and causing uncontrollable muscle constriction (Tr. 78; CCRB Ex. 16). "Viewed as a whole, the evidence, including expert testimony, supports the conclusion that defendant used a taser on the victim, which constituted a dangerous instrument because it was readily capable of causing serious physical injury under the circumstances of its use." People v. Johnson, 184 A.D.3d 545 (1st Dept. 2020).

The draft decision inaccurately characterizes the evidence in stating that both prongs struck § 87(2)(b) "front thigh, an area within the Patrol Guide's 'recommended point of aim' and outside the zones likely to result in protracted harm" (Decision, 34). Dr. Cederroth's

testimony (Tr. 77-78), and the photograph of § 87(2)(b) injury (CCRB Ex. 10), established that only one of the Taser prongs struck § 87(2)(b) thigh. The second prong hit § 87(2)(b) in the chest. Respondent Thompson's BWC shows that, at the moment he fired his Taser, the Taser's red light is pointed at § 87(2)(b) chest (CCRB Ex. 1 at 0:01:27). The BWC also clearly shows a mark at the precise location on § 87(2)(b) chest where the Taser prong hit (CCRB Ex. 1 at 0:01:27). Patrol Guide 221-08 specifically advises members of the service to avoid discharging their taser at an individual's chest. Additionally, the material from the CEW training that Respondent Thompson received also specifically warned members of service against targeting the chest area (CCRB Ex. 16). The evidence clearly demonstrates that Respondent Thompson aimed at, and struck, an area of § 87(2)(b) body more likely to result in protracted harm.

Secondly, the draft decision incorrectly found that the evidence failed to disprove the applicability of the justification defense (Decision, 35). As detailed in the CCRB's June 2, 2023, Post-Trial Brief, while it is true that § 87(2)(b) did not respond to the Respondent's orders to drop the knife, there was no evidence presented at trial from which Respondent Thompson could have reasonably believed that there was to be the "imminent use of physical force" inflicted by § 87(2)(b) against either of the Respondents, as is required to invoke justification under Penal Law § 35.15(1). As was established through the video evidence and the testimony of the Respondents, before he was tased, § 87(2)(b) statements contained no threats; he just repeatedly asked the Respondents why they were there and told them to leave. § 87(2)(b) made no motion towards the Respondents that would have reasonably suggested that he was about to use physical force. As explained above, refusing to drop the knife is not enough, especially

considering that § 87(2)(b) was cooking in his own home and it was obvious from his questions that he genuinely had no idea why the police were there.

Further evidence that Respondent Thompson's deployment of his Taser was not justified is apparent in the Deputy Commissioner's conclusion that the taser deployment may have been "tactically premature," and Respondent Davis' testimony that § 87(2)(b) should not have been tased (Tr. 438), both which were consistent with the Patrol Guide and Respondent's CEW training (Decision, 37).

VII. The Evidence Established That Respondents Thompson and Davis Committed Reckless Endangerment in the Second Degree.

The evidence presented at the trial established by a preponderance that Respondents Thompson and Davis committed Reckless Endangerment in the Second Degree when they failed to render aid to § 87(2)(b) after Respondent Thompson shot him. Under N.Y. Penal Law § 120.20, an individual commits Reckless Endangerment in the Second Degree when he recklessly engages in conduct which creates a substantial risk of serious physical injury to another person.

§ 87(2)(b) autopsy (CCRB Exhibit 7) and Dr. Cederroth's testimony established that two bullets fired from Respondent Thompson's gun hit § 87(2)(b) causing extensive damage to his body (Tr. 70-75). Both officers knew that Respondent Thompson shot § 87(2)(b) (Tr. 445, 551), and they both failed to provide any aid whatsoever as § 87(2)(b) lay dying (Tr. 446, 553). Under N.Y. Penal Law § 15.05(3), an individual behaves "recklessly with respect to a result when he or she is aware of and consciously disregards a substantial and unjustifiable risk that such a result will occur...The risk must be of such a nature and degree that disregard thereof constitutes a gross deviation from the standard of conduct that a reasonable person would observe in the situation." The Respondents' failure to render aid was reckless. Both were aware of, and disregarded, the substantial risk that § 87(2)(b) was seriously injured. Despite the

knowledge that § 87(2)(b) was, at the very least, seriously injured, both Respondents ignored their training, and the Patrol Guide, and chose not to render aid to § 87(2)(b)

The trial evidence proved by a preponderance that the Respondents' failure to render aid to § 87(2)(b) increased the risk that he would suffer serious physical injury. Dr. Cederroth testified that there was a very remote possibility that § 87(2)(b) could have survived his injuries if he had received immediate medical attention (Tr. 76). Even though the chance of § 87(2)(b) surviving with medical intervention was approaching zero, it was not zero—it remained a “possibility” (Tr. 76). The Court of Appeals has held that Reckless Endangerment in the Second Degree merely requires *an* increased risk, not a specific quantity or amount of increased risk. See People v. Galatro, 84 N.Y.2d 160 (1994). As such, the CCRB met its burden of proof and that Specification should not have been dismissed.

VIII. The Deputy Commissioner Incorrectly Declined to Decide Whether the Respondents Actions Violated the Patrol Guide.

The Deputy Commissioner erred in determining that because she found that the CCRB had not met its burden as to any of the Penal Law sections, she did not need to rule on whether the evidence established that the Respondents had violated any of the provisions of the Patrol Guide. This was incorrect. The Respondents were charged with violations of both the Penal Law and the Patrol Guide. Were the Police Commissioner to disagree with the draft decision's recommendation that the specifications be dismissed because the trial evidence failed to prove any of the Penal Law charges, the Police Commissioner would have to determine whether the evidence proved a violation of the applicable Patrol Guide sections. In failing to issue a recommendation as to the Patrol Guide sections, the Deputy Commissioner did not fulfill her responsibility to the Police Commissioner with respect to the report and recommendation. Given

that the Police Commissioner potentially will have to determine whether both the Penal Law and the Patrol Guide were violated, it was premature for the Deputy Commissioner to determine that the Patrol Guide question is “moot” (Decision, 9). We would request that the final report and recommendation to the Police Commissioner include recommendations as to the charged Patrol Guide sections.

The absence of recommendations as to the Patrol Guide violations in the draft decision, notwithstanding, it is the CCRB’s position that the evidence presented at trial established by a preponderance that the Respondents violated each of the Patrol Guide sections with which they were charged, for the reasons laid out in the CCRB’s June 2, 2023, Post-Trial Brief. The draft decision notes that the “trial record raised serious doubts as to whether Respondent Thompson followed Department guidelines during this incident – specifically, the tactical operation guidelines related to encounters with Mentally Ill or Emotionally Disturbed Persons (‘EDP’) set forth in patrol Guide 221-13” (Decision, 7). Noting the Patrol Guide § 221-01’s underscoring of the requirement that members of service actions be guided by the preservation of human life, the draft decision found that the “stark contrast between Respondent Davis’s approach and that of Respondent Thompson casts a troubling shadow on the latter’s course of action and whether he complied with these Department procedures” (Decision, 7).

Referring to the NYPD Force Investigation Division (“FID”) Report’s conclusion that Respondent Thompson acted within Department guidelines, the draft decision noted that this conclusion “seemingly ignored Patrol Guide 221-13” (Decision, 7), and further added that the “FID Report and the trial testimony of its commanding officer leave this tribunal with disquieting questions about FID’s conclusion that Respondent Thompson acted “consistent with Department guidelines”” (Decision, 8).

When discussing Respondent Thompson’s deployment of his Taser, the draft decision specified Respondent Davis’ efforts to stop him from using his Taser, including Respondent Davis telling him not to deploy, and noted that “Respondent Davis’s position is supported by the Patrol Guide procedures in place for EDPs, as well as their CIT training.” (Decision, 37). The draft decision further concluded that Respondent Thompson’s deployment of the Taser may have been “tactically premature.” (Decision, 37).

Finally, in discussing whether the Respondents’ violated Patrol Guide § 221-04’s requirement to render aid, the draft decision noted that it was undisputed that after § 87(2)(b) was shot, neither respondent checked § 87(2)(b) pulse or breathing and failed to administer CPR to § 87(2)(b) and concluded that this “inaction appears to constitute a failure to follow Patrol Guide 221-04 that requires all officers involved in a shooting to ‘render assistance to injured, if necessary’” (Decision, 38).

For the above stated reasons, the CCRB requests that you reject Deputy Commissioner’s finding of not guilty and find that the crime exception was satisfied because the CCRB established every element of the crimes of assault in the first degree, attempted assault in the first degree, assault in the second degree, menacing in the second degree, criminal trespass in the second degree, and reckless endangerment in the second degree, and Respondent Thompson’s use of force was not justified.

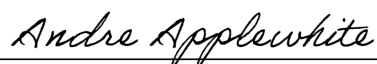
It is notable that the Tribunal saw fit to conduct a review of CCRB’s investigatory procedures prior to the Statute of Limitations date (Decision, 4). This unusual analysis suggests, without any statutory authority, that the Tribunal engaged in some determination of CCRB’s “worthiness” of applying the Crime Exception pursuant to Civil Service Law § 75(4). No such examination is required by the Civil Service Law, nor did such an examination appear in this

Tribunal's precedential case of CCRB v. Pantaleo, DCT #2018-19274. In that case, although the Tribunal similarly held CCRB to the same burden of proving each element of the charged Penal Law crimes by a preponderance of the evidence, it undertook no comparable assessment or judgment of CCRB's investigation prior to the Statue of Limitations date. None applies in this matter.

The CCRB cannot more strongly disagree with Deputy Commissioner Maldonado's recommendation that the CCRB proceed with charges against members of service while the NYPD has still not provided CCRB information necessary to determine whether misconduct occurred. In order to adopt Deputy Commissioner Maldonado's proposal, the CCRB would be forced to substantiate allegations where it has not been given access to full evidence, recommend charges against the members of service with at least one substantiated allegation, and request that the Department serve those members prior to the expiration of the statute of limitations. The CCRB recognizes that you are the final arbiter of discipline in these matters. We request that you find the respondents guilty of all allegations and terminate them from the Department. We further request that you explicitly reject the Deputy Commissioner's misguided findings regarding the appropriateness of the crime exception.

DATED: October 11, 2023
 New York, New York

Respectfully submitted,



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